

ORIGINAL

PAYMENT RECEIVED

Exhibit No. 1 to Subpart S [Sec. 502.304(a)]--

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2009 JAN 13 PM 4:41

OFFICE OF THE
FEDERAL MARITIME COMMISSION

Small Claim Form for Informal Adjudication
and Information Checklist

Federal Maritime Commission, Washington, DC.

Informal Docket No. 1896(1)

La Torre's Enterprises, owner Cesar La Torre, 7435 Mosser Lane, El Cerito, CA 94530.
Kaskamach SRL, Jaime La Torre, Calle Ciudad Real 241, oficina 203, Urbanizacion
Higuereta, Surco, Lima, Peru and/or all representatives and all/or agents. Jennifer La
Torre, agent, 704 S.knott ave. Unit 4J, Anaheim, CA. 92704
(Claimant)

vs.

Natural Freight Ltd./Skytruck, 6033 W. Century Blvd., Suite 670, Los Angeles, CA
90045; Agility Logistics, 1251 E. Dyer Rd. Suite 200, Santa Ana, CA 92705; Hansa
Transports SAC, Canaval y Moreira 340, Floor 12, San Isidro, Lima, Peru. And/or all
representatives and /or all agents.
(Respondent)

I. La Torre's Enterprises, owner Cesar La Torre, 7435 Mosser Lane, El Cerito, CA 94530.
Kaskamach SRL, Jaime La Torre, Calle Ciudad Real 241, oficina 203, Urbanizacion
Higuereta, Surco, Lima, Peru and/or all representatives and all/or agents. Jennifer La
Torre, agent, 704 S.knott ave. Unit 4J, Anaheim, CA. 92704. Import/ Export.

II. Natural Freight Ltd./Skytruck, 6033 W. Century Blvd., Suite 670, Los Angeles, CA
90045; Agility Logistics, 1251 E. Dyer Rd. Suite 200, Santa Ana, CA 92705; Hansa
Transports SAC, Canaval y Moreira 340, Floor 12, San Isidro, Lima, Peru. And/or all
representatives and /or all agents. Forward.

III.

- A) On April 11, 2006 La Torre's Enterprises orders (2) two containers 40HC, from
Sky truck/Natural, through Ana Maria del Carpio to load lamps, lighting, fixtures
and accessories from OK Sourcing, Irwindale, CA USA, to Callao, Peru.
- B) Soon after Ms. Del Carpio went on vacation and left in her place Alonzo Bernal.
Mr. Bernal didn't have a clue on how to proceed nor did he know our company's
name (according to Mr. Bernal instead of La Torre's Enterprises he called our
Company "Amkotron" reefer Email dated 4/26/2006). At that point both
containers left to Callao, Peru without the exporters Invoice, detailing the contents
of said containers. Therefore a Bill of Lading was receipt on or about the arrival
of containers to Peru, that according to Skytruck/Natural contained "used
Monitors".
- C) Upon arrival to Callao, Peru, Cosmos Agencia Maritima receipts the master Bill
of Lading and continues thereafter to advise each representative; in the case of

V. (Revised)

Section 10(d)(1) of the Shipping Act of 1984

"No common carrier, ocean transportation intermediary, or marine terminal operator may fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property."

Skytruck/Natural their Peruvian representative is Hansa. Kaskamach as many other importers know that the vessel has arrived and receipts a copy of the Bill of lading to perform a pre-custom control procedure (aforo previo). At that point Kaskamach realizes that the Bill of Lading specifies "used monitors" and confronts Hansa with said mistake, their reply was that "there is nothing to worry about that this is a simple procedure and that they'll correct it" by Law there are (15) fifteen days from the day of the unloading of the vessel at Peruvian port to change the Item Description.

- D) This procedure should be process as follows: Hansa must request from Cosmos to present to Sunat (Peruvian Custom Authority) a change of Item Description, which they did but was denied without legal basis or support to that effect. The second, always by Hansa's request to Cosmos, was an appeal to the denial, supported by our legal right to do such change, which was never done in other words the procedure and both containers were abandoned, leaving these goods at the entire disposal of customs.

IV. from the Port of Long Beach, Ca. USA to the port of El Callao, Lima, Peru. Bill of Lading, marks and numbers, KHJU 840 343-7, 1ft x 40 HC, seal 39043 and CMCU 492 764-5, 1ft x 40 HC, seal 07089; 31752kgs. /70000 lbs., 900 packages. Declared as used monitors; Bill of Lading # LSA-1958 dated April 29th. 2006. Prepaid by Kaskamach SRL (consignee) see attached Bill of Lading.

V.

- a) Not only was consignee's property abandoned, but also Hansa sent consignee a letter asking them to sign that the responsibility was a entirely consignee. Furthermore Skytruck/Natural sent La Torre's to collection through a Law firm requesting payment for the shipping cost of the containers in question.
- b) Please note that the law is very clear that no container should be shipped without the proper documentation and knowledge of its contents. So if Skytruck/Natural didn't have this documentation, as previously done, containers were supposed to be held in storage until the proper documentation arrived with a charge to the exporter in this case La Torre's Enterprises. As a result of their negligence and malice all goods were lost on exporters account.
- c) On 7/22/2008 I have personally visit the legal department of Agility which is the company that bought Natural/Skytruk, talked to Caryn Lewis-Bugg, who very kindly promise to give me an answer within a week, gave me an e-mail and phone where to contact her, but after 3 weeks of waiting she does not respond to my calls nor my e-mails.

VI. Claimants loss all property placed in the hands of defendants, plus cost incurred by retaining an attorney in Peru, trying to recover said containers, also expenses in Los Angeles through out the past two and a half years trying to resolve this matter with defendants for a total amount of \$ 50,000.00. I plead with your entity to do not allow a big corporation to send small companies like ours, who are struggling to make a decent living, go bankrupt due to their negligence and abuse of monetary power.

Please allow reimbursements for the maximum allowed by law to cover all losses incurred through the abuse of power of the above mentioned companies.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary

9. Attached please find copy of Bill of lading, e-mail to Agility logistics to the attention of Garret McDonald; e-mail attention to Reto Kaufman/VP, representative for Skytruck Air/Sea Transport Inc.; official documentation and notices from Sunat (Peruvian Customs Authority).

Commission review.

RECEIVED

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of correspondence or other documents in support of claim.

(Date) 10/21/08
(Claimant's signature) [Signature]
(Claimant's address) 704 S. Knott Av. 4-J, Anaheim, CA 92804
(Signature of agent or attorney) [Signature]
(Agent's or attorney's address) 704 S. Knott Av. 4-J Anaheim, CA 92804

VERIFICATION

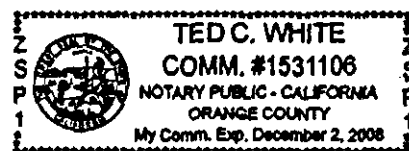
State of CALIFORNIA, County of Orange, ss: 545-21-9659,
being first duly sworn on oath deposes and says that he or she is Jennifer A. LaTorre (Agent)

The claimant [or if a firm, association, or corporation, state the capacity of the affiant] and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

[Signature]
Subscribed and sworn to before me, a notary public in and for the State of _____, County of _____, this 21 day of OCT, 2008. (Seal)
ORANGE

[Signature]
(Notary Public)

My Commission expires, 12/4/08



COPY

Commission review.

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of correspondence or other documents in support of claim.

(Date) December 18,

2008

Claimant's signature)

Cesar La Torre
Cesar La Torre

(Claimant's address)

7535 Mosser Ln., El Cerrito CA 94530

(Signature of agent)


Jennifer La Torre

(Agent's address)

704 S. Knott. Ave. 4J, Anaheim, CA 92804

VERIFICATION

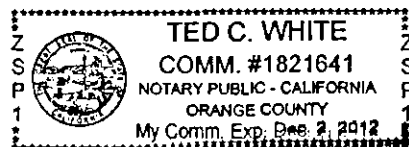
State of California, County of Orange, ss: 545-21-9659 being first duly sworn on oath deposes and says that he or she is Jennifer Alexis La Torre (agent).

The claimant [or if a firm, association, or corporation, state the capacity of the affiant] and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of California,
County of Orange, this 12 day of JANUARY, 2009. (Seal)

Paul E. White
(Notary Public)

My Commission expires, 12/2/2012



Bronco Container Lines

BILL OF LADING
FOR COMBINED TRANSPORT
AND PORT TO PORT SHIPMENT

SHIPPER La Torre's Enterprises 7435 Moeser Lane El Cerrito, CA 94530		B/L NO. LSA-1958	
CONSIGNEE Kaskamach SRL Calle Ciudad Real 241 Oficina 203 Urb Higuiereta Surco Lima, Peru		EXPORT REFERENCES LSA-1958 COPY - NON NEGOTIABLE	
NOTIFY same as consignee		FORWARDING AGENT - REFERENCES Natural Freight Ltd. 6033 W. Century Blvd., Suite 670 Los Angeles, CA 90045 POINT AND COUNTRY OF ORIGIN CA	
PLACE OF RECEIPT (*) Irwindale		DOMESTIC ROUTING / EXPORT INSTRUCTIONS / FOR DELIVERY CONTACT Hansa Transports SAC Canaval y Moreyra 340 Floor 12 San Isidro, Lima, Peru Tel. 51-1-421-8344 Fax 51-1-221-1024	
VESSEL Irwin Logos V. 614S		PORT OF LOADING LOS ANGELES	FINAL DESTINATION (*) Callao
PORT OF DISCHARGE CALLAO			

MARKS AND NUMBERS	NO OF PACKAGES	AS PER SHIPPERS DECLARATION	GROSS WEIGHT	VOLUME
Shippers Load and Count:				
KHJU 840 343-7 1 X 40 Seal: 39043 ft. HC	450 Package(s)		15876 Kgs	
CMCU 492 764-5 1 X 40 Seal: 07089 ft. HC	450 Package(s)		35000 Lbs	
	900 Packages		15876 Kgs	
			35000 Lbs	
			31752 Kgs	
			70000 Lbs	
AS ADDRESSED	900 PACKAGE(S)	USED MONITORS	31752 KGS	
		FREIGHT PREPAID	70000 LBS	
		SHIPPER'S LOAD, STOW & COUNT		

These commodities, technology, or software were exported from the United States in accordance with the Export Administration Regulations for ultimate destination PERU. Diversion contrary to U.S. Law is prohibited.

NOTICE: ALL SERVICES PROVIDED HEREUNDER ARE SUBJECT TO TERMS AND CONDITIONS OF SERVICE CONTAINED ON THE REVERSE SIDE. LIABILITY OF BRONCO CONTAINER LINES MAY BE LIMITED IN ACCORDANCE WITH SAID TERMS.

OCEANFREIGHT CHARGES	RATE	PREPAID	COLLECT	REMARKS
Door to port		\$4,683.60		Received the goods or the containers, vans, trailers, pallet unit or other packages said to contain goods herein mentioned, I apparent good order and condition, except as otherwise indicated, to be transported, delivered or transhipped as provided herein. All of the provisions written, printed or stamped on either side hereof are part of this bill of lading contract. IN WITNESS WHEREOF, the carrier or agent of said vessel has signed <u>371188</u> bills of lading, all of the same tenor and date, one of which being accomplished, the others to stand void. Dated at <u>Los Angeles, CA</u> On <u>April 26, 2006</u> by <u>Bronco Container Lines, Ltd. as carrier</u>
TOTAL AMOUNT DUE		\$4,683.60		

**Fwd: LSA-1958 Claim**

Thursday, May 22, 2008 10:03 AM

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: "CESAR LA TORRE" <cesarlatorre@hotmail.com>

LSA-1958 Claim.eml (8372KB)

Este es el segundo email a Garret, luego de esto ya empeze la comunicacion con Maria Taigat.

Note: forwarded message attached.

Forwarded Message: LSA-1958 Claim

Tuesday, April 29, 2008 10:46 PM

LSA-1958 Claim

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: gmcDonald@agilitylogistics.com

acta_previo_LSA1958.pdf (929KB), Bill_of_Lading_LSA1958.pdf (65KB),
latorres_natural_case_lawyer_letter.JPG (2143KB), LSA-1958 invoice.tif (120KB),
reclamo_decomiso_1.JPG (234KB), reclamo decomiso 2 email.jpg (95KB),
reclamo decomiso 3 email.jpg (51KB),
rectificacion_de_descripcion_LSA1958.JPG (2634KB)

Hi Garret, this is the second time that I am sending the information regarding BL LSA-1958, Master SUDU260039996029, according to the facts, in March-2006, Latorre's enterprises booked with Natural Freight/Sky truck, two (02) containers to Callao Peru consigned to Kaskamach SRL (CMCU4927645 and KHJU 8403437). When these containers arrived to Callao-Peru, the customs found there was a mistake in merchandise description, your office in Lima Peru proceeded to fix the error, they submitted a petition of correction to customs, being rejected by Peruvian customs who took possession of those two containers, this was a complete and exclusive mistake from the forwarder, they tried to skip their responsibility pretending to get a letter from Kaskamach to assume responsibility of such mistake.

After that they abandoned those containers showing an immense irresponsibility. The Peruvian custom took those containers from your company and not from Kaskamach or Latorre's, they were at primary zone, they never delivered the shipment to the consignee, instead of claiming the abusive attitude of the Peruvian customs, your company just forgot about it; finally the Peruvian customs took those containers definitely, creating a loss of over \$30,000.00 US dollars to our Company.

On our part we have tried to rescue these containers, but since we were not legally capable to do, we tried to retain an attorney but again your company left us out cold and customs refused to negotiate since the only legal way was through your representatives in other words you abandoned our property. Furthermore your company sent us to collection through a Law Firm for said freight (you lose our merchandise and we have to pay for transporting it). We made exhausting attempts to resolve this matter with Natural Freight in Los Angeles, at that time they were trying to excuse them selves by saying that they never receipt the information in regards of the goods of said containers, if so, isn't it illegal to ship any thing without knowing what it is? Or making up any type of merchandise and shipping it without us knowing what you claim was the content of them? This is very clear, there is no mistake about it your company is fully responsible for our loss and does not want to live up to its responsibility.

If you have any questions, please, do not hesitate to contact us.

Thanking you in advance for your kind attention and cooperation in this matter, and that justice will prevail, we remain

Sincerely,

Jaime La Torre
Kaskamach SRL
626-587-6517

Cesar La Torre
Latorre's Enterprises
510-504-7032

JLAT, CLAT/ jlat

attachments

Be a better friend, newshound, and know-it-all with Yahoo! Mobile. [Try it now.](#)

**La Torre Enterprises - Natural Freight File Ref. # LSA-1958**

Wednesday, February 14, 2007 6:20 PM

From: "Reto Kaufmann" <retok@skytruck.com>

To: palcuzco@yahoo.com

Cc: "Melendez, Maritza" <MMelendez@geo-logistics.com>, LHeath@geo-logistics.com

Dear Jaime,

Reference is made to your recent telephone conversation with our ocean export supervisor Mrs. Ana Maria del Carpio in regards to the above order.

Please take note that all legal matters for Natural Freight Ltd are now handled by their New York corporate office - Mrs. Maritza Melendez and/or Lisa Heath who is the project leader for the transition/integration of Natural Freight Ltd into Geo-Logistics/Agility group of companies. You should be able to reach them at 1-800-229-1998. Unfortunately, I'm not in a position to further assist you on your dealings with Natural Freight and/or their collection agencies, etc. Thank you!

Please take note that your case/file was transferred to the former VP of administration @ Natural Freight Ltd in New York (Mr. Armin Frey) in July 2006 for collection purposes even before we ever knew about the merger/buyout of Natural Freight to PWC/Geo-Logistics, etc. I would assume that there was ample time given to you to respond to the numerous written correspondence on this particular shipment sent by Armin Frey before your account was tendered to the collection agency. The original operations file has already been transferred to the archive station of Natural Freight in Brooklyn/New York.

Please consult directly with Natural Freight Ltd. There is no need to call this office anymore as we are not able to help you in any way with your dealings in regards to this past shipment.

Thank you!

Sincerely,
Reto Kaufmann / VP

Skytruck Air/Sea Transport Inc.
6033 W. Century Blvd, Suite 670
Los Angeles, CA 90045

Phone: (310) 641-3857
Fax: (310) 568-9360

All services provided hereunder are subject to the terms and conditions of service available at www.skytruck.com. Liability of Skytruck Air/Sea Transport Inc. may be limited in accordance with said terms.



S U N A T	
ADUANA MARITIMA DEL CALLAO	
R.O.U :	118 201200/2006-000575
FECHA :	22/05/2006
HORA :	16:27

Resolución Jefatural de División No.

Vistos, el Expediente N° 025641 de fecha 18.05.06 mediante el cual COSMOS AGENCIA MARITIMA S.A.C. identificado con código 0217 RUC 20100010136 y domicilio en Jr. Mariscal Miller 450 901 Callao, solicita la rectificación del Manifiesto de Carga de Ingreso N° 1081-2006;

CONSIDERANDO :

Que, con fecha 14.05.06 arribo al puerto del Callao, la nave CAP DOUKATO descargando entre otros los contenedores CMCU 4927645 y KHJU 8403437 bajo el amparo del Manifiesto de Carga de Ingreso N° 1081-2006 Conocimiento de Embarque master SUDU260039996029 detalle 155 que dice contener 900 paquetes con monitores usados con un peso bruto de 31 752,00 kg.;

Que, con Exp. 025641 de fecha 18.05.06 COSMOS AGENCIA MARITIMA S.A.C. solicita la rectificación de la descripción de mercancías del Manifiesto de Carga de Ingreso N° 1081-2006 Conocimiento de Embarque master SUDU260039996029 detalle 155 indicando que donde dice monitores usados, debe decir cuatrimoto, minimotos eléctricas, rampa para moto, cascos de moto, lavadores de auto, skates, generadores, accesorios de autos, lámparas, accesorios de lámparas, protector de chimenea etc., acompaña a su pretensión copias de las Facturas Comerciales pe-10256 y pe-1027 y su lista de empaque;

Que, con fecha 02.06.06 la Oficina de Oficiales de Aduanas formula preventivamente el Acta de Inmovilización N° 118-2006-0300-000023 a la mercancía que se detalla en anexo adjunto con un peso bruto total de 8 780,00 kg;

Que, el Artículo 138° del Reglamento de la Ley General de Aduanas D.S. 011-2005-EF establece que la solicitud de rectificación de errores del manifiesto de carga es presentada sólo por el transportista o su representante en el país dentro del plazo de quince (15) días contados a partir de la fecha de término de la descarga y debe sustentarse con la documentación correspondiente;

Que, al respecto se verifica que las Facturas Comerciales Nros. Pe-1026 y pe-1027 no contienen una descripción detallada de las mercancías, no indican las unidades vendidas, ni su precio unitario, ni el estado de las mercancías (nuevo o usado), tampoco la unidad de medida, menos aun las características de las mercancías, como marca, modelo, número de serie o código, así también el documento presentado como Lista de Empaque no detalla el contenido de cada bulto, motivos por los cuales la documentación presentada por el transportista no sustentan la rectificación solicitada, observándose además una diferencia de -22 972,00 kg respecto del peso manifestado y recibido, el cual tampoco ha sido justificado;

Que, el inciso d) del Artículo 108° del TUO de la Ley General de Aduanas D.S. 129-2004-EF establece que se aplicará la sanción de comiso de las mercancías cuando la autoridad aduanera verifique diferencia entre las mercancías que contienen los bultos y la descripción consignada en los manifiestos de carga, infracción que se ha configurado en el presente caso, por lo que, debe decretarse el comiso de la mercancía inmovilizada;



SUNAT	
ADUANA MARITIMA DEL CALLAO	
P.O.D.U. :	115 TALLERES DE ADOCUACION
FECHA :	22/06/2006
HORA :	16:27



Estando al Informe N° 0754-2006-SUNAT-3D1200 emitido por la División de Manifiestos cuyos fundamentos se reproducen en la presente resolución y de conformidad con el Art. 102° del Texto Unico Ordenado de la Ley General de Aduanas aprobado por con el D.S. 129-2004-EF, el Art. 5° del Reglamento de la Ley General de Aduanas aprobado por D.S. 011-2005-EF, concordante con el Reglamento de Organización y Funciones aprobado por el D.S. 115-2002-PCM y la Resolución de Superintendencia N° 190-2002-SUNAT, Memorandum N° 349-2006-SUNAT/3D0000;

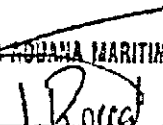
SE RESUELVE:

ARTICULO PRIMERO.- DECLARAR Improcedente la solicitud de rectificación de la descripción de mercancías del Manifiesto de Carga de Ingreso N° 1081-2006 Conocimiento de Embarque master SUDU260039996029 detalle 155 por los fundamentos expuestos en la parte considerativa de la presente Resolución.

ARTICULO SEGUNDO.- DECRETAR el comiso administrativo de la mercancía materia del Acta de Inmovilización N° 118-2006-0300-000023 por los fundamentos expuestos en la parte considerativa de la presente Resolución.

Regístrese, Comuníquese y remítase a la División de Administración para su notificación al interesado.

INTENDENCIA ADUANA MARITIMA CALLAO


JOSE GUILLERMO ROCCA TORRES
Jefe (e) de la División de Manifiestos

DISTRIBUCIÓN:

- División de Manifiestos
- Oficina de Oficiales de Aduana
- División de Administración (actuados)
- COSMOS AGENCIA MARITIMA S.A.C.
Jr. Mariscal Miller 450 901 Callao
- T.A. ALMUSA
Av. Almirante Grau 1395 Bellavista Callao

**SUPERINTENDENCIA NACIONAL DE ADMINISTRACION TRIBUTARIA
MARITIMA DEL CALLAO**

NOTIFICACION No. 118-3D0300-2007-000146

DIVISION DE ADMINISTRACION - IA MARIT

**PERSONAS : RUC - 20338644931. HANSA TRANSPORTS S.A.S.
DIRECC : AV. ENRIQUE CANAVAL Y MOREYRA, 140 1201-PISO 17**

**REF.: DFTO : LIMA PROV: LIMA DISTRITO: SAN ISIDRO
MANIF No. 118-2006-3D0300-001081.**

MEDIANTE LA PRESENTE SE LE COMUNICA QUE EN LOS RECINTOS DEL TERMINAL DE ALMACENAMIENTO ALMUSA, EXISTEN MERCANCIAS EN ABANDONO LEGAL, CORRESPONDIENTE AL MANIFIESTO DE CARGA 118-2006-1081, CONDOMINIO DE EMBARQUE SUDU260039996029, POR LO QUE DE ACUERDO CON LOS ARTICULOS 92 Y 93 DEL D.S. 129-2004-EF, TUO DE LA LEY GENERAL DE ADUANAS, ARTICULO 147 DEL REGLAMENTO DE LA LEY GENERAL DE ADUANAS, D.S. 011-2005-EF, SE LE OTORGA UN PLAZO DE CINCO (05) DIAS UTILES CONTADOS DESDE LA FECHA DE LA RECEPCION DE LA PRESENTE, PARA NACIONALIZAR LA MERCANCIA, CASO CONTRARIO NO PODRA RECUPERAR SU MERCANCIA Y SE PONDRÁ A DISPOSICION DE ACUERDO A LEY.

NOMBRE Callao, 02 de Marzo de 2007

DIRECC :

FIRMA :

FECHA :

VINCULO:

ELABORADO POR : BUITRON CABEZAS JUSTINA .

JOSE NICOLAS BOGGIO LEGUIA
Jefe de la División de Administración
INTENDENCIA DE ADUANA MARITIMA DEL CALLAO





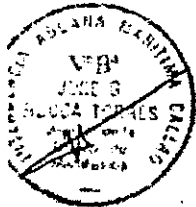
SUNAT	
AGENCIA NACIONAL DE ADMINISTRACIÓN TRIBUTARIA	
R.O.U.	: 118-2006-3D1200-118
FECHA	: 22/06/2006
HORA	: 16:27

Resolución Jefatural de División No.

ANEXO de la Resolución de División N° 118-2006-3D1200-

N°	CANTIDAD	UNIDAD	DESCRIPCIÓN
1	24	u	accesorios de lampara m/e
2	2	u	adornos con base de metal
3	3	u	candelabros m/e
4	100	u	carcasas para celular b/e
5	167	u	cargadoras de celular p/auto r/e
6	1	u	cofre de estera con madera
7	3	u	cofres navideños de cerámica
8	2	u	faroles
9	5	u	lamparas
10	1	u	lampara fluorescente 13 w de pared
11	752	u	lamparas m/e
12	2	u	lamparas pequeñas
13	122	u	lamparas r/e
14	47	u	pantallas de luminarias r/e
15	88	u	pantallas chicas para lampara b/e
16	1	u	portamacetero
17	4	u	portaretrato de 4" x 6" Item RZ60, made in china
18	2	u	porta velas GL02288 made in china
19	13	u	protector de chimenea y ventana b/e
20	1	u	protector de maceta
21	7	u	juegos de tachos de lata de 3 piezas c/jgo. r/e
22	2	u	juegos de tachos de lata de 4 piezas c/jgo. r/e
23	111	u	accesorios para lampara r/e
24	1	u	balon de aire comprimido marca AIRGAS TA1 1002 usado
25	1	u	bicimotor ref. SUN BIRD r/e
26	21	u	casacas para motocross mca pantera b/e
27	16	u	cascos b/e
28	1	u	cuatrimotor mod. EDGE chasis LAWAAGMC24C108113
29	7	jgo	cubiertas para aro marca Whell covers mod. KT-982, 4 pzas/jgo. (3 jgo de aro 15" y 4 jgo. de aro 14") r/e
30	2	u	empaquetaduras multiples m/e
31	3	u	empaquetaduras para motor r/e
32	2	u	filtros de aceite marca Fran usado

SUNAT
 AGENCIA MARITIMA DEL CALLAO
 R.DIV : 118 TD1200, 1104-1007
 FECHA : 22/03/2001
 HORA : 16:27



33	3	u	filtros de aire marca Fran usado
34	1	u	forro de color plomo p/auto mca coverite made in china b/e
35	12	u	forros de auto r/e
36	3	u	forros de color plomo p/auto s/m usado
37	3	u	generadores champion equipment 11 hp mod. C4 1155, series 05077055, 050410412, 051007474
38	1	u	lampara mca. Baycon mod. 651 c/cable enrollable m/e
39	633	u	lamparas m/e
40	66	u	lamparas r/e
41	6	u	lavadores de auto a presion mca coleman power mate mod. PW09112201, motor 6.5 Honda GCV160 dimensiones 25"x28"x35" peso 95 lbs series C10710628, C11212409, 910700110, C09211354, 904800223 y C11212318
42	1	u	maletin de herramientas mca Power mate (incompleto) contiene sierra circular, destornillador inalámbrico, linterna y cargador
43	3	u	minimoto mod. MY1020 2500 RPM 500 watts 18.3 amp. Chasis QF2008492, UF2002555, QF2002887
44	128	u	pantallas chicas p/lampara b/e
45	63	u	pantalones para motocross mca panterra b/e
46	1	u	parilla de aluminio para auto b/e
47	15	lgo	pisos para carro de 4 pzas/lgo. b/e
48	31	u	plumitas varios r/e
49	1	u	ponchadora mca NIKOTA Item 01225 serie JD3124710 made in china r/e
50	3	u	protectores de aros 14" p/auto en caja made in taiwan r/e
51	5	u	protectores de chimenea y ventana r/e
52	1	u	seguro para timon marca the club mod. LX-0897N usado
53	40	u	skate con casco marca Kryptonicks, 35 con casco y 05 sin casco b/e

01

01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 01 / 03

1 DATOS GENERALES DE LA ACCIÓN DE CONTROL O FISCALIZACIÓN				
1.1 FECHA 02.06.06	1.2 HORA 14:00	1.3 ACCIÓN 06	1.4 LUGAR DE LA INTERVENCIÓN T.A. ALMUSA	1.5 NOMBRE DE LA INTERVENCIÓN SAGITARIO XVII

2 IDENTIFICACIÓN DEL INTERVENIDO O RESPONSABLE DE LOS BIENES / RAZÓN SOCIAL		
2.1 APELLIDOS Y NOMBRES Cosmos Agencia Marítima S.A.C	2.2 T. DOC. 04	2.3 N° DOC. IDENTIDAD 20100010136

2.4 DOMICILIO (Calle, Av., Jr. / N° - Interior y Depto. - Urb. / Dist. / Prov. / Dpto.) Tr. Maniscal Miller 450 901 Callao - Callao	2.5 RAZÓN SOCIAL Cosmos Agencia Marítima S.A.C	2.6 RUC 20100010136
--	---	------------------------

3 MEDIO DE TRANSPORTE				4 DATOS DEL DESPACHO ADUANERO	
3.1 EMPRESA TRANSPORTISTA COSMOS SA	3.2 T. VEH 07	3.3 MATRÍCULA CAP DUKATO	3.4 MANIFIESTO 1081-2006	4.1 RÉGIMEN U OPERACIÓN ADUANERA	
3.5 PROCEDENCIA / DESTINO USA / CALLAO				4.2 N° DECLARACIÓN	4.3 FECHA

5 FUNDAMENTO DE HECHO	6 FUNDAMENTO DE DERECHO
MERCANCIA NO MANIFESTADA	Art. 108° inc. d) TUO LEY GENERAL DE ADUANAS Art. 184° REGLAMENTO DE LA LEY GENERAL DE ADUANAS

7 DESCRIPCIÓN DE LOS BIENES				
7.1 N°	7.2 CANTIDAD	7.3 UNID. MEDIDA	7.4 DESCRIPCIÓN	7.5 OBSERVACIONES
01	24	u.	Accesorios de lampara m/e.	
02	02	u.	adornos con base de metal.	
03	03	u.	candelabros m/e.	
04	160	u.	carcasas para celular B/E	
05	167	u.	cargadores de celular P/ auto	R/E
06	01	u.	corre de estera con madera	
07	03	u.	corres navideños de ceramica.	

8 OBSERVACIONES:
Mercancías que se inmovilizan en cumplimiento al Exp. N° 118-301250-2006-025041 Item 01 al Item 22 corresponden al contenedor de 40' N° KHJU 840243-7 Item 23 al Item 53 corresponden al contenedor de 40' N° CMCU 402308-5 La mercancía inmovilizada queda bajo custodia del T.A. ALMUSA.

9 ESPECIALISTA U OFICIAL DE ADUANAS  FIRMA / CÓDIGO	10 MINISTERIO PÚBLICO  FIRMA / SELLO	11 INTERVENIDO O USUARIO  FIRMA / HUELLA DIGITAL
--	--	---

12 ENTREGA DE MERCANCÍAS AL ALMACÉN DE ADUANAS DE LA SUNAT		
12.1 FECHA Y HORA	12.2 NÚMERO DE DOCUMENTO DE RECEPCIÓN	12.3 CON OBSERVACIÓN
12.4 NOMBRE, CÓDIGO Y FIRMA DE SERVIDOR QUE ENTREGA		12.5 CON OBSERVACIÓN
12.4 NOMBRE, CÓDIGO Y FIRMA DE SERVIDOR QUE RECEPCIONA		SI ☐ NO ☐

Av. Guardia Chulaca N° 118 - Callao Telf.: 429-5080 - 453 6028

- "Inmovilización": Plazo para presentar expediente con sustento documental: 10 días hábiles siguientes a la fecha de Notificación.
- "Incautación": Plazo para presentar Pedido de Devolución: 20 días hábiles siguientes a la fecha de Notificación.
- "Comiso": Plazo para presentar Pedido de Devolución: 02 días hábiles a partir de la fecha de Notificación.
- La Sección 10 es suscrita por el Fiscal, de encontrarse presente durante la intervención.
- La recepción del presente documento tiene carácter de Notificación.

ACTA DE INMOVILIZACIÓN - INCAUTACIÓN - COMISO Nº 118 - 2006- 0300 000023

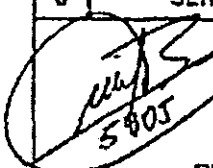
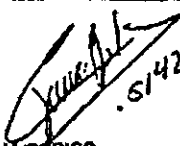
Formato INPC-FR.01.01 (Hoja Adicional para Descripción de Bienes)

01

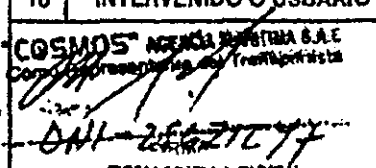
01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 02 03

7	DESCRIPCIÓN DE LOS BIENES			
7.1 N°	7.2 CANTIDAD	7.3 UNID MEDIDA	7.4 DESCRIPCIÓN	7.5 OBSERVACIONES
08	02	u.	Faroles.	
09	05	u.	lamparas	
10	01	u.	lampara fluorescente 13 w, de pared	
11	732	u.	lamparas m/e.	
12	02	u.	lamparas pequeñas.	
13	122	u.	lamparas R/E.	
14	47	u.	pantallas de luminaria R/E	
15	88	u.	pantallas chicas para lampara B/E	
16	01	u.	portamarcetero	
17	04	u.	portaretrato de 4" x 6" item R260 made in china	
18	02	u.	porta velas GLO2288 made in china	
19	13	u.	protector de chimenea y ventana B/E	
20	01	u.	protector de marea.	
21	07	u.	juegos de tachos de lata de 3 piezas C/jgo. R/E.	
22	02	u.	juegos de tachos de lata de 4 piezas C/jgo. R/E	
23	111	u.	Accesorios para lampara. R/E	
24	01	u.	Balon de aire comprimido marca AIRGAS TAI 1002 usado	
25	01	u.	Bicimoto REF. SUN BIRD R/E	
26	21	u.	Casacas para motocross Mca Panterra B/E	
27	16	u.	Cascos B/E	
28	01	u.	Cuatrimoto mod. EDGE CHASIS LAWAAGMC24C108113	
29	07	Jgo	Cubiertas para aro marca wheel covers. mod. KT-962, 4 y 25/Jgo (3 Jgo de aro 15" y 4 Jgo de aro 14") R/E	
30	02	u.	Empaquetaduras multiples M/E	
31	03	u.	Empaquetaduras para motor R/E	
32	02	u.	Filtros de aceite marca fran. usado	
33	03	u.	Filtros de aire marca Fran usado.	
34	01	u.	Forno de color plomo p/ auto mca coverite made in china B/E	
35	12	u.	Fornos de auto R/E	
36	03	u.	Fornos de color plomo p/ auto S/M usado.	
37	03	u.	Generadores Champion Equipment UHF Mod. C41155, series 05077055, 050410412, 051007474	
38	01	u.	Lampara mca Baycon mod. 651 cable enrollable. M/E.	

8	SERVIDOR DE ADUANA
 	
FIRMA/CODIGO	

9	MINISTERIO PÚBLICO
	
FIRMA/SELLO	

10	INTERVENIDO O USUARIO
	
FIRMA/BUJELA DIGITAL	

ACTA DE INMOVILIZACIÓN - INCAUTACIÓN - COMISO Nº 118-2006-0300-000023

Formato INPC-FR.01.01 (Hoja Adicional para Descripción de Bienes)

01

01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 03/03

7	DESCRIPCIÓN DE LOS BIENES				
1.1 N°	2.2 CANTIDAD	7.3 UNID. MEDIDA	7.4 DESCRIPCIÓN	7.5 OBSERVACIONES	
39	633	M	Lamparas M/E		
40	66	M	Lamparas R/E		
41	06	M	Lavadores de auto a presión Mca Coleman Powermate Mod. PW09112201, motor 5.5 Honda GCV160 dimensiones 25"x28"x35" Peso 95 lbs series 010710628, C11212409, 910700110, C09211354, 904800223, C11212318.		
42	01	M	Maletín de herramientas mca Powermate (incompleto) contiene sierra circular, destornillador inalámbrico linterna y cargador		
43	03	M	Minimoto mod. MY1020 2500 RPM 500 Watts 18.3 amp. chasis QF200B492, UF2002555, QF2002887.		
44	126	M	Pantallas duca's p/lampara B/E		
45	63	M	Pantalones para Motocross Mca Panterra B/E		
46	01	M	Parrilla de aluminio para auto. B/E		
47	15	M	Pisos para carro de 4pzas/390. B/E		
48	31	M	Plumillas varios R/E		
49	01	M	Ponchadora Mca NIKOTA Item 01225 raie JD3124710 made in China		
50	03	M	Protectores de Aros 14" p/auto en caja made in Taiwan R/E		
51	05	M	Protectores de Chimenea y ventana R/E		
52	01	M	Seguro para timon marca The Club Mod. LX-0697N usado		
53	40	M	skate con casco marca Kryptonicks, 35 con casco y 5 sin casco B/E		

8 SERVIDOR DE ADUANA

[Firma]
5965
5/42

FIRMA/SELLO

9 MINISTERIO PÚBLICO

FIRMA/SELLO

10 INTERVENIDO O USUARIO

COSMAUS
Como Representante del Transportista

[Firma]
DN1-25621277

FIRMA/HUELLA DIGITAL

SEALS & TENENBAUM

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A Professional Corporation

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Anaheim, California 92801

(714) 991-9131

Fax: (714) 991-6526

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November 21, 2006

714-991-9131

LINDA L. SEALS
JAY M. TENENBAUM

WALTER W. SCHUSTER
RANDALL A. BAKER

OF COUNSEL
PHILBERT E. SEALS

Cesar La Torre
La Torre Enterprises
208 Ashbury Avenue
El Cerrito CA 94530

San Francisco Office

3701 Sacramento Street, Suite 451

San Francisco, Ca 94118

(415) 750-0311

Please respond to
Anahelm Office

OMAR
CLAY A

~~Re: Natural Freight Ltd. of La Torre Enterprises~~

Principal Balance Due: \$7,868.22

Our File No.: 143152.001

Dear Mr. La Torre:

This firm represents **Natural Freight Ltd.**. The matter of your indebtedness has been brought to our attention and immediate payment is hereby demanded of the principal plus interest at the maximum rate allowed by law.

Your continued neglect of this past-due balance will cause us to commence appropriate legal proceedings as are necessary to protect the interests of our client. Please, be advised that as well as damages, we will seek attorney fees and court costs.

Your payment must be received within ten (10) days from the date of this letter.

Very truly yours.

SEALS & TENENBAUM

Jay M. Tenenbaum

cc: Natural Freight Ltd.

This communication is from a debt collector. This is an attempt to collect a debt, and any information obtained from you will be used for that purpose.

FEDERAL MARITIME COMMISSION
Washington, DC 20573
Attention: Mary Angel

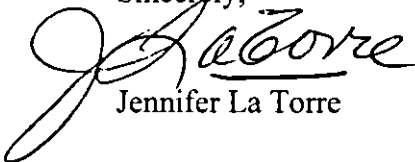
RE: La Torre's Enterprises claim

January 25, 2009

Dear Mary,

Enclosed please find three sets of supporting documents attaché to each translation; I hope that every thing is in order. Thanking you in advance for your kind attention and cooperation in this matter, I remain

Sincerely,

A handwritten signature in cursive script, appearing to read "J La Torre", written over the printed name.

Jennifer La Torre

(714)381-9331



CONTAINERS

Tuesday, April 11, 2006 5:53 PM

From: "Jaime La Torre" <palcuzco@yahoo.com>
To: "Ana Maria Martinez" <anam@skytruck.com>

Hola Ana Maria, necesito dos 40'HC donde Octavio, invoice to Latorre's, ship to kaskamach, cargaremos luces lamparas y accesorios, la direccion es

OK SOURCING INC.

16019 Adelante St.
Irwindale, CA 91702
(626)812-6505

Jaime La torre

Talk is cheap. Use Yahoo! Messenger to make PC-to-Phone calls. Great rates starting at 1¢/min.

Yahoo Mail

Tuesday, April 11, 2006 5:53 PM

Containers

From: 'Jaime La Torre' palcuzco@yahoo.com
To: "Ana Maria Martinez" anam@skytruck.com

Hello Ana Maria, I need two 40'HC at Octavio's, invoice to Latorre's, ship to Kaskamach, we'll be loading lamps and accessories, the address is

OK SOURCING INC.
16019 ADELANTE ST.
IRWINDALE, CA 91702
(626)812-6505

Jaime La Torre



RE: Address - thank you.

Wednesday, April 26, 2006 12:47 PM

From: "Jaime La Torre" <palcuzco@yahoo.com>
To: "Alonso Bernal" <alonsob@skytruck.com>

Gracias por tu interes Alonso, pero dime, que es Amkotron?

Alonso Bernal <alonsob@skytruck.com> wrote:

Muchas gracias Señor,

Le puedo encargar los los documentos para el ultimo embarque de Amkotron. Factura peso etc,

Se le agradece,
Estoy a sus ordenes.

Sincerely yours,
NATURAL FREIGHT LTD.
Los Angeles Branch
Alonso Bernal

Phone: (310) 641-3023
Fax: (310) 568-9360

All services provided are subject to the terms and conditions of service which are available at
www.naturalfreight.com and/or www.skytruck.com.
Liability of Natural Freight Ltd.
and/or Skytruck Air/Sea Transport Inc. may be limited in accordance with said terms.

From: Jaime La Torre [mailto:palcuzco@yahoo.com]
Sent: Tuesday, April 25, 2006 4:37 PM
To: Alonso Bernal
Subject: Re: Address - thank you.

Enviar toda la correspondencia a esta direccion
Latorre's Enterprises
Att.Cesar La Torre
7435 Moeser Ln.
El Cerrito, CA 94530

Saludos

Alonso Bernal <alonsob@skytruck.com> wrote:

Estimado Señores,

Necesito su direccion donde le pueda hacer llegar documentos de exportacion.

Me rechazan "208 Ashbury Ave. El Cerrito, CA 94530"

Gracias por su atencion.

Sincerely yours,
NATURAL FREIGHT LTD.
Los Angeles Branch
Alonso Bernal

Phone: (310) 641-3023
Fax: (310) 568-9360

All services provided are subject to the terms and conditions of service
which are available at www.naturalfreight.com and/or www.skytruck.com.
Liability of Natural Freight Ltd.
and/or Skytruck Air/Sea Transport Inc. may be limited in accordance with
said terms.

Yahoo Mail

From: "Alonso Bernal"alonsob@skytruck.com.

To: "Jaime La Torre"palcuzco@yahoo.com

Subject: RE: Address

Dear Sirs

I need your address where I could forward all documentation for export. "208 Ashbury Ave. El Cerrito, CA 94530" is rejected.

Thank you for your attention.

Sincerely Yours,

Natural Freight LTD.

Long Beach Branch

Alonso Bernal

From: Jaime La Torre
Sent: Tuesday, April 25, 2006 4:37PM
To: Alonso Bernal
Subject: RE: Address

Forward all correspondence to this address
Latorre's Enterprises
ATTE: Cesar La Torre
7435 Moeser Ln.
El Cerrito, CA 94530

Regards,

Yahoo Mail

From: "Alonso Bernal" alonsob@skytruck.com.

To: "Jaime La Torre" palcuzco@yahoo.com

Subject: RE: Address

Thank you Sir,

Can I please ask for the documentation for the last shipment of Amkotron, invoice, weight etc.

Thank you,

I'm at your service

Natural Freight LTD.

Long Beach Branch

Alonso Bernal

From: Jaime La Torre
Sent: Tuesday, April 25, 2006 4:37PM
To: Alonso Bernal
Subject: RE: Address

Thank you for your interest Alonso, But can you tell me What is Akotron?



Fw: CARTA DE RESPONSABILIDAD

Sunday, January 25, 2009 8:28 PM

From: "JAIME LA TORRE" <comtronintjaime@yahoo.com>

To: "Jaime La Torre" <palcuzco@yahoo.com>

carta de responsabilidad kaskamach.doc (20KB)

--- On Thu, 5/18/06, Lorena Camino <Lcamino@hansa-transport.com.pe> wrote:

From: Lorena Camino <Lcamino@hansa-transport.com.pe>

Subject: CARTA DE RESPONSABILIDAD

To: "Dennis Arrasco Usquiano" <hd_technology_cargo@yahoo.com>, "contabilidad_kaskamach@terra.com.pe" <contabilidad_kaskamach@terra.com.pe>, "JAIME LA TORRE" <comtronintjaime@yahoo.com>

Date: Thursday, May 18, 2006, 10:18 AM

Adjunto carta de responsabilidad la cual debera ser firmada en hoja membretada y devuelta via mail o fax.

Asimismo por favor enviar copia de los pagos respectivos por la rectificacion.

Gracias!

Saludos,

Lorena Camino Bazàn

Jefe de Operaciones/Administrativo

HANSA TRANSPORTS S.A.C.

Tel.(511) 221-3088 / Fax (511) 221-1024 Nextel 819*9460

e-mail: lcamino@hansa-transport.com.pe

Please visit our web site:

www.hansa-transport.com.pe

San Isidro, 18 de mayo de 2006

Señores
HANSA TRANSPORTS SAC
Presente.-

Ref.: Nave Cap Dukato V 614E
Contenedor KHJU8403437 / CMCU4927645
HBL LSA-1958

Estimados señores:

Nos dirigimos a ustedes para solicitarles se sirvan efectuar la rectificación de descripción para lo cual nos comprometemos a asumir los gastos y multas que se generen de la citada rectificación.

Sin otro particular, nos despedimos.

From: "Lorena Camino" Lcamino@hansa-transport.com.pe
To: "Dennis Arrasco Usquiano" hd_technologycargo@yahoo.com,
"contabilidad Kaskamach" Kaskamach@terra.com.pe", "Jaime LaTorre"
comtronintjaime@yahoo.com

Enclosed please find letter of responsibility which would have to be signed in letterhead paper and return via mail or Fax.

At the same time please include copy of payment for the correction.

Thanks!

regards

Lorena Camino Bazan

Chief of operations/administrative

Hansa Transports S.A.C.

San Isidro, May 18 2006

Sirs
HANSA TRANSPORTS SAC

Ref.: Vessel Captain Dukato V 614E
CONTAINER KHJU8403437/CMCU4927645
HBL LSA-1958

Dear Sirs:

We are addressing you to request the ratification of description, for which we will assume all responsibilities and expenses and / or fines that, could originate for said correction.
With no further delay, we remain

**RE: FW: CONTAINERS con error ref. LSA-1958**

Wednesday, May 24, 2006 8:25 PM

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: "Ana Maria del Carpio" <delcarpioam@yahoo.es>

Pura mentira estan diciendo, si lo que quieren Mitch y Alonso es evadir responsabilidades, lo entiendo, conozco otros especimenes asi, pero no importa, solamente quiero que me ayuden a solucionar esto. Hablare con Lorena, como me indicas, que ella decida lo que se debe hacer, te avisare.

Cuidate y gracias por todo.

Ana Maria del Carpio <delcarpioam@yahoo.es> wrote:

Estimado Jaime:

Agradecere tomes contacto con Lorena Camino de Hansa porque ya se la ha enviado esta semana la solicitud de correccion en la descripcion de la carga. Justamente tiene que confirmar Lorena a Mitch si es que los bl originales que tienen los pueden corregir ellos en Lima o es necesario que Mitch emita un nuevo set y los envíe por Fedex que seria un costo de \$35 x concepto de courier.

Jaime, conversando con Mitch me dice que Alonso y el te han estado solicitando la factura comercial en repetidas oportunidades y que tu les pasaste un email con informacion del container, cantidad etc pero sin la descripcion del producto y la factura comercial la recibieron recién en Mayo 22 y fue enviada por Lorena.

Como te comente en anterior email, es entera responsabilidad del exportador proporcionar la factura comercial 48 horas antes de la fecha de zarpe del barco para poder manifestar los bl sin problema alguno y evitarnos contratiempos a futuro. Por lo que agradecere tengas en cuenta que cualquier multa por correccion o sobreestadia que se incurra por esta correccion tendra que ser asumida totalmente por La Torre Enterprises.

Agradeciendo de antemano que para futuros embarques por favor es IMPRESCINDIBLE que la factura comercial sea enviada 48 horas antes de la fecha de zarpe ya que se pueden evitar gastos innecesarios como el de correccion de descripcion de carga o en origen los "roll over fee" que las navieras actualmente estan facturando cuando tienen que hacer "roll" de los bookings cuando su dpto de documentacion no ha recibido las instrucciones de como emitir los BL y lamentablemente nosotros como agentes embarcadores no podemos estar creando cantidad de bultos, peso, descripcion para evitar estas multas.

Cualquier consulta que tuvieses me avisas.

Saludos,

Ana Maria del Carpio

Jaime La Torre <palcuzco@yahoo.com> escribió:

Buen dribbling, mi querida Ana Maria, espero que pronto estes bien de salud, se te extraña. Te cuento que yo no busco culpables, lo que busco son soluciones, esta no es la primera vez que se comete el mismo error, en la anterior, aduanas no se percató de ello, inexplicable, pero así fue. El asunto es que si Uds. no me ayudan a arreglar este problema, corro el riesgo que me decomisen los containers, como si hubiera cometido un delito, lo cual

no es asi, este es un pais de locos, por decir lo menos, contrabando de basura. Uds. tienen la solución en las manos y espero su ayuda, si puedes escribir a Lorena y recomendarle por ahí su colaboración en esto, te lo voy a agradecer, es cuestión de voluntades.
Las facturas ya las tiene Lorena, se le comunico del error y espero que sea oportuno.

Estare en Los Angeles el martes, espero visitarte en tu oficina, te llamare cuando llegue.

Cuidate, mejorate y vuelve pronto.

Ana Maria del Carpio <delcarpioam@yahoo.es> wrote:

Estimado Jaime;

Estoy en descanso medico hasta el proximo martes por lo que no estoy yendo a la oficina.

La manifestacion de la carga en el Bill of Lading es en base a la factura comercial que emite el exportador como siempre ha sido Jaime, es responsabilidad del exportador proveer de la factura comercial para poder emitir correctamente el bill of lading, no se emite el bill of lading en base a emails. Recuerda que por eso es que siempre te estamos solicitando la factura comercial.

Ahora agradecere para aclarar este tema y como te comento no estoy en la oficina para poder ver este file, me envíes copia de la factura comercial de estos 2 containers y puedan chequear con la naviera y con el agente en Lima que se pueda corregir el manifiesto, el bill of lading y si habria multa etc...

Por otro lado, agradecere indiques booking #, nuestra referencia LSA- para agilizar cualquier tramite de correccion que se tenga que hacer.

A la espera de tu pronta respuesta.

Reto Kaufmann <retok@skytruck.com> escribió:

From: Jaime La Torre [mailto:palcuzco@yahoo.com]
Sent: Wednesday, May 24, 2006 12:01 PM
To: Ana Maria Martinez
Cc: Alonso Bernal
Subject: Fwd: CONTAINERS

Hola Ana Maria, estos dos containers tienen problemas por error en la descripción de la mercadería, error de Natural freight al consignar monitores en vez de luces.

Por favor, toma las medidas para corregir esto porque estoy a punto de perderlos por este error, te adjunto el email con el que se origino la orden de envío de containers a Irwindale.

Saludos

Note: forwarded message attached.

Jaime La torre

How low will we go? Check out Yahoo! Messenger's low PC-to-Phone call rates. De: "Jaime La Torre" <palcuzco@yahoo.com>

Para: "Lorena Camino" <Lcamino@hansa-transport.com.pe>

Asunto: Fwd: CONTAINERS

Fecha: Mon, 22 May 2006 10:03:33 -0700

Este es el email con que se genero la orden de los dos containers que por error se consigno como monitores.

Por favor, tomar las medidas para evitar mayores contratiempos en el aforo de estos containers.

Atentamente

Jaime La Torre
Kaskamach SRL

Note: forwarded message attached.

Love cheap thrills? Enjoy PC-to-Phone calls to 30+ countries for just 2¢/min with Yahoo! Messenger with Voice. De: "Jaime La Torre"

<palcuzco@yahoo.com>

Para: "Ana Maria Martinez" <anam@skytruck.com>

Asunto: CONTAINERS

Fecha: Tue, 11 Apr 2006 17:53:48 -0700

Hola Ana Maria, necesito dos 40'HC donde Octavio, invoice to Latorre's, ship to kaskamach, cargaremos luces lamparas y accesorios, la direccion es

OK SOURCING INC.

16019 Adelante St.

Irwindale, CA 91702

(626)812-6505

Jaime La torre

Talk is cheap. Use Yahoo! Messenger to make PC-to-Phone calls. Great rates starting at 1¢/min.

Llama Gratis a cualquier PC del Mundo.
Llamadas a fijos y móviles desde 1 céntimo por minuto.
<http://es.voice.yahoo.com>

Jaime La torre

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<http://es.voice.yahoo.com>

Jaime La torre

How low will we go? Check out Yahoo! Messenger's low PC-to-Phone call rates.

From: "Jaime La Torre" palcuzco@yahoo.com
To: "Ana Maria del Carpio" [\[mailto:delcarpioam@yahoo.es\]](mailto:mailito:delcarpioam@yahoo.es)

What they are saying are all lies, if that's what Mitch and Alonso want, is to evade all responsibilities, I understand, I know these kinds specimens, but I really do not care, all I want is your help to resolve this. I'll talk to Lorena as you have indicated, she could decide what needs to be done, and I'll keep you informed.
Take care and thank you for everything

From: "Ana Maria del Carpio"[mailto:delcarpioam@yahoo.es]
Sent: Wenesday, 24 of May 2006 8:17 PM
To: "Jaime La Torre"
CC: lcamino@hansa-transport.com.pe
Subject: RE: FW: CONTAINERS con error ref.LSA-1958

Dear Jaime:

I would appreciate if you make contact with Lorena Camino of Hansa because we have already sent her the petition for correction of description of load. At this time, we are waiting confirmation from Lorena to Mitch if the original Bill of Lading that they have can be corrected in Lima or is necessary that Mitch issues a new set and send them by FEDEX, which will incurred a cost of \$35.

Jaime as I commented in my previous e-mail, it is the entire responsibility of the exporter to provide the commercial invoice 48 hrs before vessel departure to be able to manifest in the Bill of lading without any problems and prevent any future problems. For which I'll be grateful take under consideration that any fine for correction or overstay shall be the sole responsibility of Latorre Enterprises.

Thanking you in advance for any future shipments, is ESSENTIAL, that the commercial invoice is submitted 48 hrs before vessel departure date, since in this way we could avoid unnecessary expenses such as corrections of load description, that would originate "roll over fee" that all forwarders are actually charging when they have to do a "roll" of the bookings, when the department of documentation has not receipt the proper instructions how to emit the Bill of lading, unfortunately as forwarders agents we cannot create quantities, weight and description to avoid penalties.

If you have any questions please let me know.

Regards,
Ana Maria del Carpio

Response from: "Jaime La Torre"palcuzco@yahoo.com

Good "dribbling", my dear Ana Maria, hoping you are in good health, you are missed. Let me tell you that I'm not looking for guilty ones, what I'm looking for are solutions, this is not the first time that this error is committed, before this, customs did not notice said mistake, unexplainable, but that's how it happened. The thing is if you don't help me out to resolve this problem, I'm at risk that customs will seize the containers, like if I had committed a crime; which is not true, this country (Peru) is crazy, understatement, can you believe it me smuggling trash. You have the solution in your hands and I expect your help, if you could please write to Lorena Camino and request her help on this matter, I'll be grateful, is only a matter of willingness.

I have sent the commercial invoices and all necessary information on this matter to Lorena Camino.

Take care, get well and comeback soon

From Ana Maria Martinez aka Ana Maria Del Carpio delcarpioam@yahoo.es
FWD; to Jaime La Torre

Dear Jaime;

I am on medical leave until next Tuesday; therefore I'm not at the office.

The description of goods in the Bill of Lading is based on the commercial invoice issued by the exporter, as it always been, Jaime, is the sole responsibility of the exporter to provide the commercial invoice in order to issue the Bill of Lading correctly, we do not issue Bill of Ladings based on emails, remember that is why we always request commercial invoices.

Now I'll be grateful in order to clear this problem and since I'm not at the office to see the original file, send me a copy of the commercial invoice of these two containers so it could be checked with the freight co. and the agent in Lima and be able to correct the manifest, the Bill of Lading and find out if there are any fines etc.....

On the hand please indicate booking #, our reference LSA- to speed up any needed corrections.

Awaiting for your prompt response

From: "Jaime La Torre" palcuzco@yahoo.com
To: "Ana Maria Martinez" <anam@skytruck.com>
CC Alonso Bernal
Subject: FWD: CONTAINERS

Hello Ana Maria, these two containers have problems by error in the descriptions of the merchandise, error of Natural Freight when it declared monitors instead of lighting fixtures.

Please take the necessary actions to correct this error because I'm about to loose them if these correction are not made, enclosed please find the original email ordering such containers.

Sincerely
Jaime La Torre



RE: FW: CONTAINERS con error ref. LSA-1958

Thursday, May 25, 2006 8:08 AM

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: "Lorena Camino" <Lcamino@hansa-transport.com.pe>

Hola Lorena, gracias por tu preocupacion en este asunto, se que este pais es burocratico y la aduana es su maximo exponente, por favor, necesito saber que va a pasar con estos containers, me refiero a lo legal, es posible que los decomisen?

----- Avisame , cuidate. -----

Saludos

Lorena Camino <Lcamino@hansa-transport.com.pe> wrote:

Beunos dias Jaime/Ana Maria:

El contenedor se encuentra actualmente inmovilizado por la aduana y se espera que la aduana notifique los requerimientos para poder liberar dicho contenedor todo esto surgio debido a la solicitud del cambio de descripcion que aduanas vio que como la misma era muy diferente a la inicial opto por inmovilizarlo para inspeccion. Aca, como saben, es todo muy burocratico e incurre en demoras innecesarias por lo que estamos a la espera que la aduana notifique a la linea. Estamos atras de esto para que se resuelva lo mas pronto posible.
Cualquier consulta no duden en contactarme.

Saludos,

Lorena Camino Bazàn
Jefe de Operaciones/Administrativo
HANSA TRANSPORTS S.A.C.
Tel.(511) 221-3088 / Fax (511) 221-1024 Nextel 819*9460
e-mail: lcamino@hansa-transport.com.pe
Please visit our web site:
www.hansa-transport.com.pe

From: "Lorena Camino" Lcamino@hansa-transport.com.pe
To "Ana Maria del Carpio" delcarpioam@yahoo.es, "Jaime La Torre" palcuzco@yahoo.com
Subject: RE: FW: CONTAINERS con error ref.LSA-1958
Date: May 25 2006 8:54 AM

Good Morning Jaime/Ana Maria

The containers are actually immobilized by customs and awaiting their notification of the necessary requirements to free said containers. This is due to the petition for the change of description; custom considers that there are huge differences between description and actual contents, therefore decided to immobilize it for inspection. Over here, as you well know, every thing is very bureaucratic and incurred in unnecessary delays, for which we are awaiting for custom to notify us. We are on top of this case to resolve it as soon as possible.

If you have any questions do not hesitate to contact me

Regards,

Lorena Camino Bazan
Chief of operations/administrative
Hansa Transports S.A.C.



Re: RV: Statement and invoice

Sunday, May 28, 2006 10:39 AM

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: "Ana Maria del Carpio" <delcarpioam@yahoo.es>

Hola Ana nMaria, lo haremos, recibiras el pago, hablare con mi hermano, necesitare otro container para Ohio, te enviare la orden el Lunes.

Cuidate, saludos

Ana Maria del Carpio <delcarpioam@yahoo.es> wrote:

Estimado Jaime:

Tenemos 2 files actualmente, LSA-1958 que es el que Lorena ya esta viendo lo de la correccion de descripcion de carga y el otro file LSA-1974 que tengo entendido el barco esta por llegar proxima semana a Callao, por lo que apreciaremos nos envíes cheque de gerencia o money order por el monto total de \$ 7793.60 (\$ 4683.60 LSA -1958 y \$ 3110 LSA-1974).

Adjunto encontraras el estado de cuenta mas la factura arriba indicada por lo que apreciaremos recibir pago total para principios de la proxima semana para que Hansa pueda liberar los BL's del file LSA-1974 sin problema alguno.

Saludos,

Ana Maria del Carpio

Nota: mensaje reenviado como archivo adjunto.

Llama Gratis a cualquier PC del Mundo.

Llamadas a fijos y móviles desde 1 céntimo por minuto.

<http://es.voice.yahoo.com> From: "Mitch Gorge" <mitchg@skytruck.com>

To: "Ana Maria del Carpio" <delcarpioam@yahoo.es>

Subject: Statement and invoice

Date: Thu, 25 May 2006 16:40:08 -0700

Dear Ana Maria

Here is the latest statement and invoice for La Torre.

Sincerely yours,

NATURAL FREIGHT LTD.

Los Angeles Branch

Mitch Gorge

Phone: (310) 641-3023

Cell: (310) 497-8600

Fax: (310) 568-9360

From Ana Maria Martinez aka Ana Maria Del Carpio delcarpioam@yahoo.es
To: Jaime La Torre palcuzco@yahoo.com

Dear Jaime:

We have 2 files actually, LSA-1958 that is the one Lorena is taking care of the correction of the description of load and the other file LSA-1974 which I understand the vessel will be arriving next week to Callao, for we would appreciate that you send us company check or money order for the total amount of \$7793.60 (\$4683.60 LSA-1958 and \$ 3110 LSA-1974).

Enclosed you'll find the latest statement and invoice for which we'll be expecting payment by the beginning of next week, so that Hansa could free the Bill of lading of file LSA-1974 without any delays.

Regards,

Ana Maria del Carpio

NATURAL FREIGHT LTD.
225 Broadway, Suite 2406
New York, NY 10007
(212) 349-5165
(212) 962-6387 Fax

Customer Statement

Statement Date:
May 25, 2006

Account Of: La Torre Enterprises
208 Ashbury Ave
El Cerrito, CA 94530

Customer ID:
LATOCERR

Invoice Number:	Invoice Date:	Due Date:	Our Ref.:	Invoice Total:	Amount Due:
41490-05	4/14/2006	4/14/2006	LSA-1958	4,683.60	4,683.60

1-30	31-60	61-90	Over 90 days		
0.00	4,683.60	0.00	0.00	Total Amount Due:	4,683.60

For payments by check, please allow 5 to 7 days and for wire transfers 1 to 2 days for processing. Invoices past their due dates should be paid immediately. All other invoices should be checked for accuracy.

From: "Jaime La Torre" palcuzco@yahoo.com
To: "Ana Maria del Carpio" delcarpio@yahoo.es

Hello Ana Maria, we'll do it, you'll receive payment, I'll talk to my brother, I'll need another container from Ohio, I'll forward you the order on Monday.
Take care, regards

ALMACENES MUNDO S.A.
ALMUSA

Nº 000949

TERMINAL DE ALMACENAMIENTO
DEPOSITO AUTORIZADO

AV. VENEZUELA 1700 LA PERLA-CALLAO

ACTA DE RECONOCIMIENTO PREVIO

FECHA: 16-05-06 VOLANTE: 18933
M/N: DOLKASTO VIAJE: 7240
MANIFIESTO: _____ SERVICIO: 5714
AGENCIA DE ADUANA: ROMERO POGGIE H. JON
NOMBRE DESPACHADOR: TERESA PRADO
CONSIGNATARIO: KASKAMUSEH S.R.L
HORA DE INICIO: 10.40 AM HORA DE CULMINACION: 23.40 PM
17.05.06

DATOS RELACIONADOS AL RECONOCIMIENTO

CONTENEDOR	PRECINTOS			BULTOS VERIFICADOS	CLASE
	ORIGEN	SUPERV.	ADUANA		
MCU492764-5	7089		02012	450	
KISU840343-7	39043		02011	450	

INCIDENCIAS/OBSERVACIONES:

ACCESORIOS, SAMPANES D' LUGAR
CUSTOMO, ETC.

ALMACEN ADUANERO

TERESA PRADO HENAOZA
DUÑO O CONSIGNATARIO
AGENTE MARITIMO O DESPACHADOR
DE AGENCIA DE ADUANA.

OR. 6.5.12

DAI 2552417

ALMUSA (LOGO)

000949

Terminal Warehouse
Authorized Storage

Av. Venezuela 1700 La Perla-Callao

Previous Recognition Act

Dated: 05-16-2006 Flyer Document: 18933
Vessel: DOUKATO voyage: 7210
Manifest: Service 5714
Custom Agency: Romero Poggi and sons
Custom Broker: Teresa Prado
Consignee: Kaskamach S.R.L.
Starting Time: 10:40 AM Ending Time: 23:40 PM
05-17-2006

Information Related to the Recognition

Container	Precincts			Verified Packages	Class
	Origin	Supervisor	Customs		
CMCU492764-5	7089		02012	450	
KHJU840343-7	39043		02011	450	

Incidents/Observations; Accessories, Wall Lamps, Quads, etc.

Stamp, Signature

signature of custom Broker
License #OPGs 42
National ID# 25792787

Vessel	Cap.Dukato
Requests	Ratification of Description
Agent Code	0217
Detail	155
Manifest #	1081
Date of Arrival	05-14-06
Import Regime	

Commissioner of the Maritime Custom of Callao

Cosmos Maritime Agency S.A.C. located at Jr Mariscal Miller 450 901 Constitutional Province of Callao-Callao, tax ID # 20100010136, we come before you, with all due respect to declare as follows that the vessel Cap. Dukato arrived at Callao on 05-14-2006 And declared at Callao as follows:

BL-SUDU260039996029

It manifested
Container CMCU4927645 USED MONITORS
Container KHJU8403437 USED MONITORS

Being the correct manifest as follows:

Container CMCU4927645 Quads, electric mini scooters, motorcycle ramps, helmets, pressure washers, skates, generators, car accessories, lamps, lamps accessories, chimney protectors.

Container KHJU8403437 Lamps, picture frames, lamp shades, lamp accessories, cellular car chargers, cellular cases, hand free, chimney protectors.

For more information we are attaching Bill of Lading, flyer document copy, packing list. After the exposed case to you, Commissioner of the Maritime Custom of Callao, we plead so that you will instruct the pertinent authorities to make the necessary changes so that justice could be served.

Callao, May 18 2006

Stamp and signature of Cosmos representative

000008
CAP60

Vapor
Solicita
Codigo de Agente
Detalle
Manifiesto No.
Fecha de Arribo
Régimen de Importación

CAP DUKATO
Rectificación de descripción
0217
155
1081
14.05.06

Señor
INTENDENTE DE LA ADUANA MARITIMA DEL CALLAO
S.L.

Cosmos Agencia Marítima S.A.C., con domicilio legal Jr. Mariscal Miller 450 901 Prov. Constitucional del Callao- Callao
con número de RUC 20100010136, ante usted con el debido respeto nos presentamos y exponemos lo
Que en la M/N Cap Dukato que arribó al Callao con fecha 14.05.2006, se manifiesto
para el Callao entre otros lo siguiente:

BL-SUDU260039996029

5 01 17
ADUANA DEL CALLAO
RUC : 20100010136-2016-01784-7
Fecha: 18.05.2006
Hora: 18:05

Se manifiesto:

CONTENEDOR CMCU4927645 USED MONITORS
CONTENEDOR KHJU8403437 USED MONITORS

Debiendo ser manifestado como sigue:

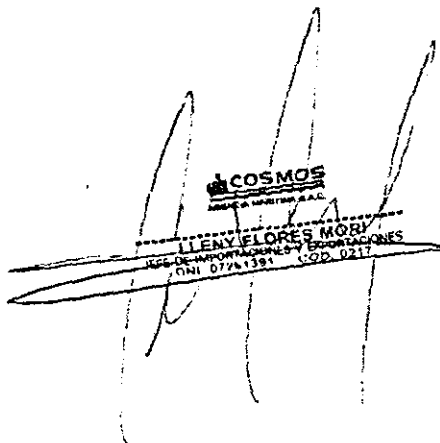
CONTENEDOR CMCU4927645 CUATRIMOTO, MINIMOTOS ELECTRICAS, RAMPA PARA MOTO, CASCOS DE MOTO
LAVADORES DE AUTO, SKATES, GENERADORES, ACCESORIOS DE AUTOS, LAMPARAS, ACCESORIOS DE LAMPARA,
PROTECTOR DE CHIMENEA

CONTENEDOR KHJU8403437 LAMAPARAS, MARCO DE CUADRO, PANTALLAS Y ACCESORIOS PARA LAMPARA,
CARGADORES DE CELULAR PARA AUTO, CARCASAS DE CELULAR, HAND FREE, PROTECTORES DE CHIMENEA

Para mayor información adjuntamos copia del B/L Hijo , copia del volante, el acta de apertura, la factura
comercial , el packing list.

Por lo expuesto a usted señor Intendente, rogamos se sirva disponer a quien corresponda, se efectúe la correspondiente
rectificación por ser de justicia.

Callao. 18 de Mayo del 2006


COSMOS
AGENCIA MARITIMA S.A.C.
HENRY FLORES MORI
RUC DE IMPORTACIONES Y EXPORTACIONES
DNI 07741391 COD 0217

Bronco Container Lines

BILL OF LADING
FOR COMBINED TRANSPORT
AND PORT TO PORT SHIPMENT

SHIPPER La Torre's Enterprises 7435 Moeser Lane El Cerrito, CA 94530		B/L NO. LSA-1958	
		EXPORT REFERENCES LSA-1958 COPY-NON NEGOTIABLE	
CONSIGNEE Kaskamach SRL Calle Ciudad Real 241 Oficina 203 Urb Higuiereta Surco Lima, Peru		FORWARDING AGENT - REFERENCES Natural Freight Ltd. 6033 W. Century Blvd., Suite 670 Los Angeles, CA 90045	
NOTIFY same as consignee		POINT AND COUNTRY OF ORIGIN CA DOMESTIC ROUTING / EXPORT INSTRUCTIONS / FOR DELIVERY CONTACT Hansa Transports SAC Canaval y Moreyra 340 Floor 12 San Isidro, Lima, Peru Tel. 51-1-421-8344 Fax 51-1-221-1024	
PLACE OF RECEIPT (*) Inwaldale		DECLARED VALUE FOR CARRIAGE	
VESSEL Irenez Logos V. 614S		DECLARED VALUE FOR CUSTOMS	
PORT OF LOADING LOS ANGELES		FINAL DESTINATION (*) Callao	
PORT OF DISCHARGE CALLAO			

MARKS AND NUMBERS	NO. OF PACKAGES	AS PER SHIPPERS DECLARATION	GROSS WEIGHT	VOLUME
Shippers Load and Count:				
KHJU 840 343-7 1 X 40 Seal: 39043 ft. HC	450 Package(s)		15876 Kgs	
CMCU 492 764-5 1 X 40 Seal: 07089 ft. HC	450 Package(s)		35000 Lbs	
	900 Packages		15876 Kgs	
			35000 Lbs	
AS ADDRESSED	900 PACKAGE(S)	USED MONITORS FREIGHT PREPAID SHIPPER'S LOAD, STOW & COUNT	31752 Kgs 70000 LBS	

These commodities, technology, or software were exported from the United States in accordance with the Export Administration Regulations for ultimate destination PERU. Diversion contrary to U.S. Law is prohibited.

NOTICE: ALL SERVICES PROVIDED HEREUNDER ARE SUBJECT TO TERMS AND CONDITIONS OF SERVICE CONTAINED ON THE REVERSE SIDE. LIABILITY OF BRONCO CONTAINER LINES MAY BE LIMITED IN ACCORDANCE WITH SAID TERMS.

(*) If the column Place of Receipt and/or Final Destination are filled in this shipment will be treated as a combined transport.

OCEANFREIGHT CHARGES	RATE	PREPAID	COLLECT
Door to port		\$4,683.60	
TOTAL AMOUNT DUE		\$4,683.60	

Received the goods or the containers, vans, trailers, pallet unit or other packages said to contain goods herein mentioned, I apparent good order and condition, except as otherwise indicated, to be transported, delivered or transhipped as provided herein. All of the provisions written, printed or stamped on either side hereof are part of this bill of lading contract.

IN WITNESS WHEREOF, the carrier or agent of said vessel has signed three bills of lading, all of the same tenor and date, one of which being accomplished, the others to stand void.

Dated at Los Angeles, CA On April 26, 2006
by Bronco Container Lines, Ltd. as carrier

Manifest	118-2006-1081	#of Packages:	166070
Arriving Date:	5/14/2006 4:25	gross weight	3,808,914.80
Unloading Date:	5/15/2006 1:20		
Vessel	Captain Doukato	Nationality	LR
Freight Agent	0217-Cosmos Maritime Agency	Num of details	311

SUDU260039996 029	SUDU260039996 029	15 5	31,752. 00	90 0	8,780. 00	90 0	8,780. 00	90 0	Hansa Transp ort SAC	Natur al Freig ht LTD	5/19/0 6	330 6
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SUNAT

SHIPPING DETAILS

MANIFEST # 118-2006-1081 DETAIL 155

PACK	GROSS WEIGHT	PACKAGING	FORWARDER	CONSIGNEE	BRANDS NUMBERS	MERCHANDISE DESCRIPTION
900 PACK	31752	2 CNT	SHIPPER: NATUAL FREIGHT LTD.D/B/A BRONCO CONTAINER LINE6033 WEST CENTURY BLVD SUITE 670 LOS ANGELES CA 90045-----	CONSIGNEE :HANSA TRANSPOR TS SAC CANAAVAL Y MOREYRA 340 FLOOR 12 SAN ISIDRO LIMA PERU NOTIFY 1:HANSA TRANSPOR TS SAC CANAAVAL Y MOREYRA 340 FLOOR 12 SAN ISIDRO LIMA PERU PERU	AS ADDRESSED	1 CONTAINER 450 PACKAGES USED MONITORS 35000 LBS. 1 CONTAINER 450 PACKAGES USED MONITORS 35000 LBS. AES ITN X2006042105470 3

CONTAINERS

NUMBER	SIZE	CONDITION	TYPE	OPERATOR	TARE
CMCU4927645	40	FCL		0217	4060
KHJU8403437	40	FCL		0217	4200



Re: RV: Nave Cap Doukato V 6124 E / MBL-SUDU260039996029

Wednesday, July 5, 2006 5:47 PM

From: "Jaime La Torre" <palcuzco@yahoo.com>

To: "Lorena Camino" <Lcamino@hansa-transport.com.pe>

Gracias Lorena, te llamare porque necesitare algun documento de Hansa.

Saludos

Lorena Camino <Lcamino@hansa-transport.com.pe> wrote:

Estimado Jaime/Lady:

Adjunto Notificación N° 2006-006217 y Resolución Jetatural de División N° 118 3d1200/2006-000576 para los fines que estimen convenientes.

Saludos,

Lorena Camino Bazàn

Jefe de Operaciones/Administrativo

HANSA TRANSPORTS S.A.C.

Tel.(511) 221-3088 / Fax (511) 221-1024 Nextel 819*9460

e-mail: lcamino@hansa-transport.com.pe

Please visit our web site:

www.hansa-transport.com.pe

Jaime La torre

Yahoo! Messenger with Voice. Make PC-to-Phone Calls to the US (and 30+ countries) for 2¢/min or less.

From: "Lorena Camino" Lcamino@hansa-transport.com.pe
From: "Jaime La Torre" <palcuzco@yahoo.com>

Dear Jaime/Lady:

Enclosed find notification #2006-006217 Jefatural resolution of division #118
3d1200/2006-000576 for what ever reasons may be necessary.

Regards,

Lorena Camino Bazan
Chief of operations/administrative
Hansa Transports S.A.C.

01

01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 01 / 03

1 DATOS GENERALES DE LA ACCIÓN DE CONTROL O FISCALIZACIÓN				
1.1 FECHA 02.06.06	1.2 HORA 14:00	1.3 ACCIÓN 06	1.4 LUGAR DE LA INTERVENCIÓN T.A. ALMUSA	1.5 NOMBRE DE LA INTERVENCIÓN SAGITARIO XVII
2 IDENTIFICACIÓN DEL INTERVENIDO O RESPONSABLE DE LOS BIENES / RAZÓN SOCIAL				
2.1 APELLIDOS Y NOMBRES Cosmos Agencia Marítima S.A.C.		2.2 T. DOC. 04	2.3 N° DOC. IDENTIDAD 20100010136	
2.4 DOMICILIO (Calle, Av., Jr., N°; Interoceano, Dpto., Urb., Distr., Prov., Dpto.) Tr. Mariscal Miller 450 901 Callao - Callao			2.5 RAZÓN SOCIAL Cosmos Agencia Marítima S.A.C.	2.6 RUC 20100010136
3 MEDIO DE TRANSPORTE			4 DATOS DEL DESPACHO ADUANERO	
3.1 EMPRESA TRANSPORTISTA COSMOS SA	3.2 T. VEH. 07	3.3 MATRÍCULA CAP DUKATO	3.4 MANIFIESTO 1081-2006	
3.5 PROCEDENCIA / DESTINO USA / CALLAO			4.1 RÉGIMEN U OPERACIÓN ADUANERA	
			4.2 N° DECLARACIÓN	
			4.3 FECHA	
5 FUNDAMENTO DE HECHO			6 FUNDAMENTO DE DERECHO	
MERCANCIA NO MANIFESTADA			Art. 108° inc. d) TUO LEY GENERAL DE ADUANAS Art. 184° REGLAMENTO DE LA LEY GENERAL DE ADUANAS	
7 DESCRIPCIÓN DE LOS BIENES				
7.1 N°	7.2 CANTIDAD	7.3 UNID. MEDIDA	7.4 DESCRIPCIÓN	7.5 OBSERVACIONES
01	24	u.	Accesorios de lamparas m/e	
02	02	u.	adornos con base de metal.	
03	03	u.	candelabros m/e.	
04	160	u.	carcasas para celular B/E	
05	167	u.	cargadores de celular. P/ auto	R/E
06	01	u.	corre de estera con madera	
07	03	u.	corres navideños de ceramica.	
8 OBSERVACIONES:				
Mercancias que se inmovilizan en cumplimiento al Exp. N° 118-301200-2006-025641 Item 01 al Item 22 corresponden al contenedor de 40' N° KHJU 840343-7 Item 23 al Item 53 corresponden al contenedor de 40' N° CHCU 402408-5 La mercancía inmovilizada queda bajo custodia del T.A. Almusa.				
9 ESPECIALISTA U OFICIAL DE ADUANAS		10 MINISTERIO PÚBLICO		11 INTERVENIDO O USUARIO
FIRMA / CÓDIGO 5905		FIRMA / SELLO		FIRMA / HUELLA DIGITAL 011-25621247
12 ENTREGA DE MERCANCÍAS AL ALMACÉN DE ADUANAS DE LA SUNAT				
12.1 FECHA Y HORA		12.2 NÚMERO DE DOCUMENTO DE RECEPCIÓN		12.3 CON OBSERVACIÓN
				SI ☐ NO ☐
12.3 NOMBRE, CÓDIGO Y FIRMA DE SERVIDOR QUE ENTREGA		12.4 NOMBRE, CÓDIGO Y FIRMA DE SERVIDOR QUE RECEPCIONA		

Av. Guerra Chulata N° 149 - Callao Telf.: 429-5680 - 453 0028

- "Inmovilización": Plazo para presentar reclamo con sustento documental: 10 días hábiles siguientes a la fecha de Notificación.
- "Incautación": Plazo para presentar Pedido de Devolución: 20 días hábiles siguientes a la fecha de Notificación.
- "Comiso": Plazo para presentar Pedido de Devolución: 02 días hábiles a partir de la fecha de Notificación.
- La Sección 10 es suscrita por el Fiscal, de encontrarse presente durante la intervención.
- La recepción del presente documento tiene carácter de notificación.

ACTA DE INMOVILIZACIÓN - INCAUTACIÓN - COMISO Nº 118 - 2006 - 0300 000023

Formato INPC-FR.01.01 (Hoja Adicional para Descripción de Bienes)

01

01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 02 03

7	DESCRIPCIÓN DE LOS BIENES			
1.1 N°	2.2 CANTIDAD	2.3 UNID MEDIDA	1.4 DESCRIPCIÓN	2.5 OBSERVACIONES
08	02	u.	Faroles.	
09	03	u.	lamparas	
10	01	u.	lampara Fluorescente 13 W, de pared	
11	792	u.	lamparas m/e.	
12	02	u.	lamparas pequeñas.	
13	122	u.	lamparas R/E.	
14	47	u.	pantallas de luminaria R/E	
15	88	u.	pantallas chicas para lampara B/E	
16	01	u.	portamarcetero	
17	04	u.	portacetrato de 4" x 6" item R260 made in china	
18	02	u.	porta velas GLO2288 made in china	
19	13	u.	protector de chimenea y ventana 3/E	
20	01	u.	protector de maceta.	
21	07	u.	juegos de tachos de lata de 3 piezas C/jgo. R/E.	
22	02	u.	juegos de tachos de lata de 4 piezas C/jgo R/E	
23	111	u.	Accesorios para lampara. R/E	
24	01	u.	Balon de aire comprimido marca AIRGAS TAI 1002 usado	
25	01	u.	Bicimoto REF. SUN BIRD R/E	
26	21	u.	Casacas para motocross Mca Panterra B/E	
27	16	u.	Cascos B/E	
28	01	u.	Cuatrimoto mod. EDGE CHASIS LAWAAG MC24C108113	
29	07	jgo	Cubiertas para aro marca wheel covers. mod KT-962, 4 jgos/jgo (3 jgo de oro 15" y 4 jgo de oro 14") R/E	
30	02	u.	Empaquetaduras multiples M/E	
31	03	u.	Empaquetaduras para motor R/E	
32	02	u.	Filtros de aceite marca fran. usado	
33	03	u.	Filtros de aire marca Fran usado.	
34	01	u.	Forro de color plomo p/ auto mca coverite uade inclina B/E	
35	12	u.	Fornos de auto R/E	
36	03	u.	Fornos de color plomo p/ auto s/M usado.	
37	03	u.	Generadores Champion Equipment UHF Mod. C41155, series 05077055, 050410412, 051007474	
38	01	u.	Lampara mca Baycon mod. 651 cable enrollable. M/E	

8 SERVIDOR DE ADUANA

[Firma] 5405

[Firma] 5142

FIRMA/CODIGO

9 MINISTERIO PÚBLICO

FIRMA/SELLO

10 INTERVENIDO O USUARIO

COSMOS AGENCIA DE TRABAJO S.A.C

Comp. Representación del Trabajador

[Firma] 25571277

FIRMA/HUELLA DIGITAL

ACTA DE INMOVILIZACIÓN - INCAUTACIÓN - COMISO Nº 118-2006-0300-000023

Formato INPC-FR.01.01 (Hoja Adicional para Descripción de Bienes)

01

01 INMOVILIZACIÓN
02 INCAUTACIÓN
03 COMISO

Página: 03/03

7	DESCRIPCIÓN DE LOS BIENES			
7.1 Nº	7.2 CANTIDAD	7.3 UNID. MEDIDA	7.4 DESCRIPCIÓN	7.5 OBSERVACIONES
39	633	M	Lamparas M/E	
40	66	M	Lamparas R/E	
41	06	M	Lavadores de auto a presión Mca Coleman Powermate Mod. PW09112201. Motor 5.5 Honda GCV160 dimensiones 25"x28"x35" Peso 95 lbs series C10710628, C11212409, 910700110, C09211354, 904800223, C11212318.	
42	01	M	Maletín de herramientas mca Powermate (incompleto) contiene sierra circular, destornillador inalámbrico linterna y cargador	
43	03	M	Ulinimoto mod. MY1020 2500 RPM 500 WATTS 18.3 amp. chasis QF200B492, UF2002555, QF2002 EBT.	
44	126	M	Pantallas chicas p/lampara B/E	
45	63	M	Pantalones para Motocross Mca Panterra B/E	
46	01	M	Parrilla de aluminio para auto. B/E	
47	15	Jgo	Pisos para carro de 4 pzas/jgo. B/E	
48	31	M	Plumillas varios R/E	
49	01	M	Ponchadora Mca NIKOTA Item 01225 RUC JD3124710 usado en Chile	
50	03	M	Protectores de Aros 14" p/auto en caja made in Taiwan R/E	
51	05	M	Protectores de Chimenea y ventana R/E	
52	01	M	Seguro para timon marca The Club mod. LX-0697N usado	
53	40	M	skate con casco marca Kriptomicks, 35 con casco y 5 sin casco B/E	

8 SERVIDOR DE ADUANA

[Firma] 5905

[Firma] 5142

FIRMA/CÓDIGO

9 MINISTERIO PÚBLICO

FIRMA/SELLO

10 INTERVENIDO O USUARIO

COMISO

Como Representante del Transportista

[Firma]

DN1-25621277

FIRMA/HUELLA DIGITAL

IMMOBILIZATION ACT – PREVENTIVE SEIZURE- SEIZURE # 118-2006-0300
Format IPCF-FR.01

No. 000023

01

01 immobilization
 02 preventive seizures
 03 seizure

page 1 of 3

1 General data of the control action

1.1 date 1.2 time 1.3 action 1.4 place of intervention 1.5 name of intervention
 06-02-06 14:00 06 T.A. Almusa Sagittarius XVII

2 Identification of Intervened or Responsible for Goods/Business Name

2.1 last names, first name 2.2 t. doc 3.3 ID #
 COSMOS Maritime Agency 04 2010001026
 2.4 address 2.5 business name 2.6 tax ID
 Jr. Mariscal Miller 450 901 Callao-Callao COSMOS Maritime Agency 20100010136

3 Means of Transportation

3.1 transport Co. 3.2 type of vessel 3.3 name of vessel 3.4 manifest
 COSMOS S.A. 07 Cap. Dukato # 1081-2006

4 Fundaments of Rights

4.1 regimes or customs operations 4.2 declaration # 4.3 date

5 Fundaments of procedure

Merchandise not manifested

6 Fundaments of rights

Article 108 inc. a) TUO of the General Customs Law
 Article 184 Code of the General Customs Law

7 Merchandise Descriptions

Numb.	Quantity	units	Description
1	24	U	lamp accessories
2	2	U	metal base accessories
3	3	U	chandeliers m/e
4	160	U	cellular cases for b/e
5	167	U	cellular car chargers r/e
6	1	U	wooded rattan box
7	3	U	Christmas ceramic boxes

8 Observations

Immobilization of merchandise in compliance w/ file # 118-301200-2006025641

From item 1 to item 22 correspond to container 40' #KHJU840343-7

From item 23 to item 53 correspond to container 40'

The seized merchandise is under the care of Almusa T.A.

Stamp and signature

9 Specialist or customs officer

Stamp and signature

10 District Attorney

11 Intervened or user

Stamp and signature

12 Delivery of merchandise to the Sunat Customs Warehouse

12.1 date and time 12.2 receipt doc numbers 12.5 observations

12.3 name, code and signature
 delivering official

12.4 name, code and signature
 receipting official

01

01 immobilization
02 preventive seizures
03 seizure

page 2 of 3

8	2	U	outdoor lamps
9	5	U	lamps
10	1	U	wall lamp fluorescent 13 w
11	752	U	lamps m/e
12	2	U	small lamps
13	122	U	lamps r/e
14	47	U	lamp shades r/e
15	88	U	small lamp shades b/e
16	1	U	potholder
17	4	U	picture frame 4"x6" item RZ60 made in china
18	2	U	candle holder GLO2288 made in china
19	13	U	chimney and window protector b/e
20	1	U	flower pot protector
21	7	U	metal trash can sets 3 pieces per set r/e
22	2	U	metal trash can sets 4 pieces per set r/e
23	111	U	lamp accessories r/e
24	1	U	Airgas TA1 1002 used
25	1	U	Sun Bird electric bike r/e
26	21	U	motocross jackets pantera b/e
27	16	U	helmets b/e
28	1	U	Quad, Edge serial#LWAAGMC24C108113
29	7	sets	rim covers, Whell, model KT.962 4 pieces, 3 15"sets and 4 14" sets
30	2	U	multiple gaskets
31	3	U	motor gaskets r/e
32	2	U	used Fran oil filters
33	3	U	used Fran air filters
34	1	U	Coverite car cover
35	12	U	car covers
36	3	U	car covers
37	3	U	champion generators series 05077055, 050410412, 051007474
38	1	U	baycon lamp model 651
39	633	U	lamps m/e
40	66	U	lamps r/e
41	6	U	coleman pressure washers PWO9112201, Hondal 5.5 motor GCV160 serial # C10710628, C11212409, 910700110, C09211354, 904800223 and C11212318
42	1	U	power mate tool box
43	3	U	miniscooter MY1020 2500 chassis QF2008492, 2002555, QF2002887
44	126	U	small lamp shades b/e
45	63	U	motocross pants pantera b/e
46	1	U	car front grill
47	15	Sets	car mats 4 pieces per set b/e

01

01 immobilization
02 preventive seizures
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page 3 of 3

48	31	U	windshield wipers r/e
49	1	U	Nikota item 01225 serial# JD3124710
50	3	U	rim covers, 14" boxed, made in Taiwan
51	5	U	chimney and window protector b/e
52	1	U	the club steering wheel lock LX-0697N used
53	40	U	Kryptonicks skate and helmets, 35 w/ helmets 5 w/out

**SOLICITUD: Reclamación Contra la Resolución Jefatural de
División N°A Div:118-3D1200-2006-000576 del 22.06.2006**

SEÑORA INTENDENTE DE LA ADUANA MARITIMA DEL CALLAO

S U N A T	
MARITIMA DEL CALLAO	
EXP. : 110-0114	-3006-039670-3
FECHA: 27/07/2006	
HORA : 15:33	(1)

S. I.

KASKAMACH S.R.L., con RUC N° 20511616884, domicilio fiscal en la Av. Argentina N° 4848 -Callao; representada debidamente por su Gerente General Sr. Jaime A. La Torre Neira con DNI N° 19996484, según poder inscrito en la Partida N° 11847313, cuya copia adjuntamos; nos presentamos ante Usted y exponemos respetuosamente:

Que, con fecha 28.06.2006 la Agencia Naviera Cosmos, ha recibido la cedula de notificación N° 2006-006217-ADUANAS-3D0300, habiendo sido notificados de la Resolución Jefatural de División N° 2006-000576 del 22/06/2006, en la cual comprende mercancía de nuestra propiedad; dicha Resolución resuelve en el artículo primero declarar improcedente la solicitud de rectificación de la descripción de la mercancía descrita en el manifiesto de carga de ingreso N° 1081-2006, según Conocimiento de Embarque Master N° SUDU260039996029; y el segundo artículo decreta el comiso administrativo de la mercancía materia del acta de inmovilización N° 118- 2006- 0300 000023, basados en los fundamentos de la parte considerativa de la Resolución de División N° 118-3D1200-2006-000576.

Consideramos que el expediente N° 025641 del 18 mayo del 2006 no ha sido resuelto aplicando las normas legales vigentes ni la realidad de los hechos sucedidos por haberse aplicado procedimientos inusuales en cuanto a la rectificación de manifiesto conforme lo dispone el INTA - PE - 09.02 (V2), publicado el 03/01/2004 .

Por lo que interponemos recurso de reclamación de conformidad con el artículo 111° del TUO, D.S.129-2004-EF y el art. 169° D.S. 011-2005-EF, concordante con el art. 117° del TUO, D.S. 135 -99-EF Código Tributario; por los Fundamentos de Hecho y Derecho que exponemos a continuación:

I. FUNDAMENTOS DE HECHO

1.-Que, de acuerdo al art. 25° de la LGA. D.S aprobado por el TUO-D.S.129-2004- EF determina que la consignación de la mercancía se acredita con el documento del transporte correspondiente, para nuestro caso, conforme al Conocimiento de Embarque N° LSA-1958, comprendido en el Conocimiento Master N° SUDU26003999602, declara como consignatario KASKAMACH S.R.L., en razón a lo

dispuesto en dicha norma legal nos constituimos como reclamantes contra la Resolución de División N° 118-3D1200-2006-000576.

2.-Que, con fecha 14/05/2006 arribó al Puerto del Callao la nave CAP DOUKATO descargando entre otras otras cargas los contenedores N° CMCU 4927645 y KHJU 8403437, según Manifiesto de Carga N° 1081-2006 y Conocimiento de Embarque Master N° SUDU260039996029.

Con expediente 025641 del 18/05/06 Cosmos Agencia Marítima SAC, solicita la rectificación del manifiesto de carga conforme el procedimiento INTA -PE .09 (V2), RUBRO VII- DESCRIPCION A.1, para lo cual acompaña las facturas comerciales N° pe-1026 y pe-1027 y su lista de empaque.

II. FUNDAMENTOS DE DERECHO

1. Que, el tercer, cuarto y quinto párrafo de la Resolución de División nro. 118-3D1200-2006-000576, es improcedente toda vez que la División de Manifiesto no debe rechazar u observar las facturas comerciales pe1026 y pe1027.
2. Que, el procedimiento INTA-PE.09.02(V2) en Rubro VII DESCRIPCION A.1 dispone que cuando se solicita la rectificación del manifiesto de carga debe acompañar las facturas comerciales pero no indica que debe examinarse, las deficiencias que puedan tener una factura comercial.
3. Que, con fecha 12 /05/06 se publicó en el Diario El Peruano el procedimiento de Importación Definitiva INTA -PG- 01(V4) aprobado por Resolución de Superintendencia Nacional Adjunta de Aduanas Nro.241-2006/SUNAT/A.
4. Que, el procedimiento INTA-PG.01 (V4) en el RUBRO VII-A-Numeral 13 Literal B) , señala que en caso que las facturas o documento equivalente no consignen todos los datos en la factura, esta información debe detallarse en la casilla 7.37 de los formatos A y A1 de la DUA .

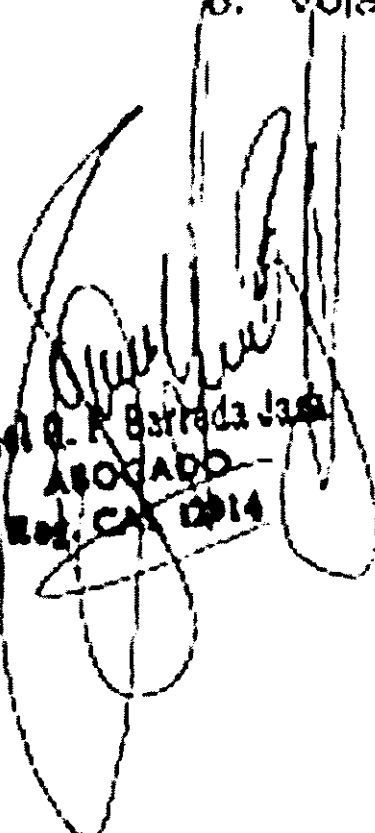
POR LO EXPUESTO:

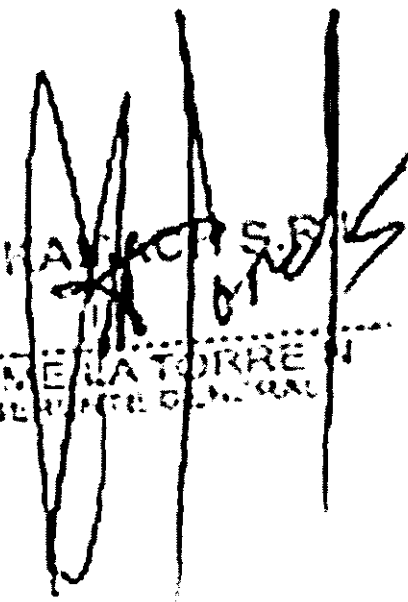
Solicitamos a Ud. Señora Intendente, se sirva declarar fundado nuestro reclamo por los Fundamentos de Hecho y Derecho expuestos.

OTRO SI DIGO:

Acompañamos copia de los siguientes documentos:

1. Notificación N° 2006-006217-ADUANAS-3D0300
2. Resolución de División N° 118-3D1200-2006-000576
3. Acta de inmovilización N° 118-2006-0300 N° 000023
4. Facturas N° pc-1026 y pc-1027
5. B/L Master N° SUDU260039996029
6. B/L Hija LSA- 1958
7. Expediente N° 118-3D1200-2006-25641-7
8. Volante de despacho ALM:USA


Miguel A. Barrera
ABOGADO
R.M. CAJ 12014


KASHA S.A.

JAIMÉ LA TORRE
GERENTE GENERAL

Callao, julio 27 del 2006

The Mayor of the maritime customs of Callao

T.M.

KASKAMACH S.R.L., represented properly by its general manager Jaime La Torre, ID 19996484, according to registered Power of Attorney # 11847313, whose copy we enclosed; we appeared before you and we expose respectfully:

That on 28.06.2006 the shipping agency Cosmos, has received the rectification certificate # 2006-006217-ADUANAS-3D0300 dated on 22/06/2006, having notified of the jefatural resolution of division # 2006-000576 of the 22/06/2006, in which includes merchandise of our property; this resolution resolves, in the article number one, to declare inadmissible the request of rectification of merchandise described in the manifest of entrance # 1081-2006, according to master BL # SUDU260039996029, and the second article decrees to the administrative seizure of the merchandise related to the immobilization act # 118-2006-0300 000023, based on the fundamentals of the considerate part of the resolution of division # 118-3D1200-2006-000576.

We consider that the file # 025641 of the May 18 of 2006 has not been resolved applying to the effective legal norms nor the reality of the happened facts, by to have applied unusual procedures as far as rectification of manifest conforms arranges INTA – PE – 09.02 (v2) published on 01/30/2004

Reason why we interpose resource of claim in accordance with article 111 of the TUO, D.S. 129-2004-EF and the article 189 D.S. 011-2005 concordant with article 117 of the TUO, D.S. 135-99-EF tributary code; by the fundamentals of facts and rights, exposed as follows:

FUNDAMENTS IN FACT

1. According to article 25 of the LGA. D.S approved by the TUO-D.S.129-2004-EF determines that consignment of the merchandise is accredited by the document of the corresponding transport, in our case, according to the BL# LSA-1958, included in the Master BL # SUDU26003999602, declares as cosignatory to KASKAMACH SRL., because of the arranged thing in this legal norm, we constituted ourselves as claimant against the resolution of division # 118-3D1200-2006-000576
2. Dated 14/05/2006 arrival to Port of Callao, ship CAP DOUKATO unloading, among others loads, containers CMCU 4927645 and KHJU 8403437 according to bill of lading # 1081-2006 and knowledge of Master BL # SUDU260039996029

With File # 025641 of the 18/05/06, Cosmos Agencia Maritima SAC, asks for the rectification of the bill of lading according to procedure INTA - PE.09 (V2), HEADING VII - A-1 DESCRIPTION, for which it accompanies commercial invoices EP-1026 and EP-1027 and its packing list.

FUNDAMENTS IN RIGHTS

1. That the third, fourth and fifth paragraph of the resolution of division # 118-3D1200-2006-000576 is inadmissible because the Manifest Division does not have to reject or to observe commercial invoices EP-1026 and EP-1027
2. That procedure INTA-PE.09.02 (V2) in Heading VII A.1 DESCRIPTION arranges that when the rectification of the bill of lading is asked for it must accompany the commercial invoices, but does not indicate that it must be examined the deficiencies that can have a commercial invoice
3. That, dated 12/05/06, had been published in the Official Peruvian newspaper "El Peruano", the procedure of definitive import INTA-PG-01 (V4) approved by Attached National Supervision of Customs # 241-2006/SUNAT/A
4. Procedure INTA-PG.01 (V4) in the HEADING Literal VII-TO-Numerical 13 8, indicates that in case the invoices or equivalent document do not brief all the data in the invoice, this information must be detailed in box 7.37 of the formats A and A1 of the DUA

AFTER THE EXPOSED CASE:

We are requesting that our petition would be approved based on the Facts and Rights exhibited.

EXHIBITS::

1. Notification # 2006-006217-ADUANAS-3D0300
2. Resolution of Division # 118-3D1200-2006-000576
3. Immobilization act # 118-2006-0300 000023
4. Invoices pe-1026 y pe-1027
5. Master BL SUDU260039996029
6. Secondary BL LSA-1958
7. File # 118-3D1200-200625641-7
8. Flyer document ALMUSA

Lawyer
Signature and stamps

Jaime La Torre
Signature and stamps

Callao, July 27 of 2006



Fwd: APERTURA DE CONTENEDORES DECLARADOS EN ABANDONO LEGAL

Friday, July 21, 2006 7:36 AM

From: "contabilidad_kaskamach@terra.com.pe" <contabilidad_kaskamach@terra.com.pe>

To: "JAIME LA TORRE" <palcuzco@yahoo.com>

- 1 - Resolución Jefatural de División 2006-000576.jpg (287KB),
- 2 - Resolución Jefatural de División 2006-000576.jpg (194KB),
- 3 - Resolución Jefatural de División 2006-000576.jpg (218KB),
- 4 - Resolución Jefatural de División 2006-000576.jpg (201KB)

----- Mensaje reenviado de Camila Salazar -----

Fecha: Wed, 19 Jul 2006 17:02:00 -0500

De: Camila Salazar

Responder-A: Camila Salazar

Asunto: APERTURA DE CONTENEDORES DECLARADOS EN ABANDONO LEGAL

Para: Rosario Vallejos Villavicencio

REF:

CONT: CMCU4927645 / KHJU840343

BL: SUDU260039996029

MN: CAP DOUKATO V. 614 E

CONSIGNATARIO: HANSA TRANSPORTS

MANIFIESTO DE CARGA: 1081-2006

ACTA DE INMOVILIACION: 118-2006-0300-000023

SITUACION DE LA CARGA: COMISO ADMINISTRATIVO

Estimada Rosario,

Muchas gracias por tu pronta respuesta.

Los señores de Cosmos (leyendonos en copia) enviarán la carta indicada en su mensaje líneas abajo.

La factura deberá emitirse a nombre de:

HANSA TRANSPORTS SAC

RUC: 20338644931

Canaval y Moreyra 340, Of. 1201

San Isidro.-

Quedamos a la espera de tus noticias con respecto a la devolución de los equipos.

Camila Salazar Mujica
HAMBURG SUD PERU
Logistics & Intermodal
Tel: (511) 610-7500
Fax: (511) 620-6262

-----Original Message-----

From: Rosario Vallejos Villavicencio [mailto:rvallejos@almusa.com.pe]

Sent: Miércoles, 19 de Julio de 2006 04:29 p.m.

To: Camila Salazar

Cc: rvallejos@almusa.com.pe; clezameta@almusa.com.pe; Lorena Camino;

HamburgSud - Neptunia; Rosa Luz Marquina; Camila Salazar;

FMeijer@hansa-transport.com.pe; Lcamino@hansa-transport.com.pe;

oguillen@cosmos.com.pe; mmendoza@almusa.com.pe;

hd_technology_cargo@yahoo.com; contabilidad_kaskamach@terra.com.pe

Subject: Re: APERTURA DE CONTENEDORES DECLARADOS EN ABANDONO LEGAL

Estimada Camila:

Despues de la conversacion con nuestro departamento legal, te informo lo siguiente:

En este caso, al decretarse el Comiso de las mercancías, procede la devolucion de los contenedores previa Carta de COSMOS (Agencia Maritima) en la que autoriza la apertura y devolucion de los contenedores, con conocimiento del DUEÑO de las mercancías, quien es el que ha ALQUILADO los contenedores.

La operacion tendra un costo de US\$100.00 (x contenedor) + 2% de gastos administrativos + IGV.

Favor enviarnos razon social y RUC de quien tendremos que emitir la factura.

Atentamente,

Rosario Vallejos Villavicencio

Jefe de Administracion

ALMUSA

Av. Venezuela 1700-1770-La Perla - Callao rvallejos@almusa.com.pe

Telefono.4980160/4980030-Axo.109

TeleFax: 4980030/4206980-Axo.101

Nextel : 819*6519

Celular: 95421745

RPM : 35839

Camila Salazar escribió:

> REF:

> CONT: CMCU4927645 / KHJU8403437

> BL: SUDU260039996029

> MN: CAP DOUKATO V. 614 E

> CONSIGNATARIO: HANSA TRANSPORTS

> MANIFIESTO DE CARGA: 1081-2006

> ACTA DE INMOVILIACION: 118-2006-0300-000023
> SITUACION DE LA CARGA: COMISO ADMINISTRATIVO
>

> -

>

> Estimados señores,

>

> El embarque de la referencia se encuentra inmovilizado en los
> almacenes de ALMUSA segun Resolucion Jefatural de Division con fecha
> 22/06/2006 (Archivo
> adjunto).

>

> Por lo anteriormente expuesto solicitamos se proceda con la apertura
> de los contenedores a fin de que estos nos sean devueltos.

>

> Favor informar fecha y hora en que se programará dicha apertura y
> vaciado a fin de que todas las partes involucradas puedan estar
> presentes.

>

> Quedamos a la espera de su confirmación.

>

> Atentos saludos,

>

> Camila Salazar Mujica
> HAMBURG SUD PERU
> Logistics & Intermodal
> Tel: (511) 610-7500
> Fax: (511) 620-6262

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----- Fin del mensaje reenviado -----

TERRA NETWORKS PERU S.A. - Servicio de Correo.

From: Camila Salazar
To: Rosario Vallejos Villavicencio
Date: Wed., July 19 2006 17.02
REF:
Cnt: CMCU4927645/KHJU8403437
BL: SUDU260039996029
Vessel: Cap Doukato V. 614E
Consignee: Hansa Transports
Load Manifest: 1081-2006
Fwd. Opening of containers declared in legal abandonment
Immobilization Act: 118-2006-0300-000023
State of Load: administrative seizure

Dear Rosario,

Thank you for your prompt response. Cosmos will issue the letter you requested.
The invoice should read as follows;

HANSA TRANSPORTS SAC
TAX ID# 20338644931
Canaval y Moreyra 340, suite 1201
San Isidro,-

We'll be expecting news in reference to the return of the equipment (containers).

Camila Salazar Mujica
HAMBURG SUD PERU
Logistics & Intermodal

From: Rosario Vallejos Villavicencio [rvallejos@almusa.com.pe]

Sent Wenesday 19 of Juju 2006 04:29

To: Camila Salazar

CC: rvallejos@almusa.com.pe; clezameta@almusa.com.pe; Lorena Camino;HamburgSud-Neptunia; Rosa Luz Maquina; Camila Salazar; FMeijer@hansa-transport.com.pe; mmendoza@almusa.com.pe; hd_technology_cargo@yahoo.com; contabilidad_KasKamach@terra.com.pe

Subject: Re: OPENING OF CONTAINERS IN LEGAL ABANDONMENT

Dear Camila:

After a conversation with our legal department we concluded as follows:

In this case, after the order of seizure of merchandise, should proceed with the return of containers, previously written authorization from Cosmos (Maritime Agency) stating opening and return of both containers, with the knowledge of the merchandise legal OWNER, who is the party that rented said containers.

This process should incur a cost of \$100.00 per container + 2% of administrative costs + tax.

Please send us the name and tax ID number to whom we should bill these charges.

Sincerely,

Rosario Vallejos Villavicencio

Administrative Chief

Almusa

Av. Venezuela 1700-1770-La Perla-Callao rvallejos@almusa.com.pe

Yahoo Mail
Camila Salazar Wrote
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Dear Sirs,

The above captioned shipment is found in Almusa Warehouse in a state of immobilization by Jefatural Resolution Division dated 06-22-20006.

Therefore in consideration to what's stated, we respectfully request the opening of said containers so that they could be returned to us.

Please inform date and time of schedule opening and emptied in order to have all interested parties present.

Awaiting for your confirmation.
Best Regards,

Camila Salazar Mujica
HAMBURG SUD PERU
Logistics & Intermodal

Seals, shields,

stamp: Sunat(Peruvian IRS)
Maritime customs of Callao
R Div: 1183d1200/2006-000576

Jefatural Resolution of the Division Number

Seen at file #025641 dated May 05 2006, by means of which COSMOS MARITIME AGENCY, S.A.C. identified with code 0217 tax ID #20100010136, located at JR. Mariscal Miller 450 901 Callao, it asks for the rectification of the manifest of load #1081-2006;

CONSIDERING:

That on 05-14-06 arrived to Callao, the vessel Captain DOUKATO unloading along with other containers CMCU 4927645 and KHJU 8403437 under the manifest of load #1081-2006 Master bill of lading SUDU260039996029 detail 155 which states to contain 900 packages of used monitors, gross weight of 31752,00 Kg;

That with file # 025641 dated 05-18-2006 COSMOS MARITIME AGENCY, S.A.C. requests the ratification of the description of merchandise of manifest of load with entrance # 1081-2006 Master Bill of lading SUDU260039996029 detail 155 indicating that where it says used monitors should say Quads, electric mini scooters, ramps for motorcycles, helmets, pressure washers, skates, generators, car accessories, lamps, lamp accessories, chimney grills etc. it accompanies its presentation copies of commercial invoices pe-10256 and pe-1027 and its packing list.

That on 06-02-06 the Office of the Officials of Customs it formulates the immobilization act preventively # 118-2006-0300-000023 to the merchandise that is detailed in the attached Exhibit with gross weight of 8780,00 Kg;

That article #138 of the Customs General Laws code D.S. 0111-2005-EF establishes that a petition for ratification for errors of the manifest should be presented only by the shipping agent or its representatives in this country within 15 days counted from the day the end of the unloading of the merchandise and accompanied by the proper documentation.

That the commercial invoices # pe-1026 and pe-1027 do not contain a detailed description of the merchandise, do not indicate quantities, characteristics, do not indicate measurements, new or used, serial numbers or codes, nor brands, models number of units in each package, therefore the documentation presented by the shipping agent's representative (Cosmos) cannot sustain the petition for ratification of the manifest, furthermore there is a difference in the gross weight of -22 972,00Kg compared with the gross weight declared and received which has not been justified;

That interjection d) of the article 108 of TUO of the Custom General Laws D.S. 129-2004-EF establishes that a sanction of seizure should be applied when the customs authority verifies the difference between the merchandise contained in the loads and the description declared in the loads manifest, violation that has been configured in this case, therefore, it must be decreed the seizure of the immobilized merchandise;

Issuing report # 0754-2006-SUNAT-3D1200 by The Division of Manifests which fundamentals are reproduced in this resolution and confirmed by Article 102 of the only text ordered by the General Customs Law approved by D.S. 129-2004-EF, article 5 of the General Customs Law approved by D.S. 011-2005-EF, in accordance with the Regulations of the Organization and Functions, approved by D.S. 115-2002-PCM and by the Resolution of the Supervisions Dept. # 190-2002-SUNAT, memorandum # 349-2006-SUNAT/3d000;

IT'S CONSIDERED

FIRST ARTICLE.- DECLARE inadmissible the petition for ratification of merchandise description of the load manifest #1081-2006, Master Bill of Lading SUDU260039996029 detail 155 by fundamentals exposed under considering in this resolution.

SECOND ARTICLE.- DECLARE the administrative seizure of merchandise stated in the immobilization act # 118-2006-0300-000023 by fundamentals exposed under considering in this resolution.

Register, communicate and send this document to the Administration Division to notify the interested party.

Signature and seal

CC

- Division of Manifests
- Office of the Officials of Customs
- Division of Administration
- COSMOS MARITIME AGENCY,S.A.C.
JR.Mariscal Miller 450 901 Callao
- T.A. ALMUSA
Av. Almirante Grau 1395 Bellavista, Callao